AMERICAN POSTAL WORKERS UNION, AFL-CIO

17TH BIENNIAL NATIONAL CONVENTION

MVS PRE-CONVENTION WORKSHOP

DRUG AND ALCOHOL TESTING

LOS ANGELES, CA

AUGUST 19, 2004



William Burrus, President
Robert C. Pritchard, Director
Michael O. Foster, Assistant Director
Motor Vehicle Division

Ulysses Coneway, N.B.A., Sub-Region S.E.

Back to Training Handouts

Motor Vehicle Service Division
Drug and Alcohol Testing – 2004

TABLE OF CONTENTS

MVS Drug and Alcohol Testing (Letter from Art Luby) **1**

Dec. 6, 1994 Letter from William Down to Moe Biller **2**

Dec. 6, 1994 Letter from Peter A. Sgro to Donald Ross **3**

Common Questions Answered – D.O.T. Drug & Alcohol Rules **4**

Letter from Robert C. Pritchard on Postal Employees and D.O.T. Regulations **5**

Letter from Samuel Pulcrano on Scheduling Employees for Drug Testing **6**

Notifying Medical Review Officer (MRO) of Prescribed Medication **7**

D.O.T. Physical and Commercial Drivers Licenses **8**

August 1, 2001 Changes to U.S. Department of Transportation Drug & Alcohol Testing Regulations **9**

Case Manager for D.O.T. Case Changed From E.A.P. to D.E.R. **10**

D.E.R. Responsible For Notifying Substance Abuse Professional **11**

Policy Change Regarding Substance Abuse Professional, April 2004 ..... **12**

Management's Instruction – P.O. 720-95-2 ..... **13**

Last Chance Agreements **14**

Regional Awards on Positive Drug Tests **15**

Back to Training Handouts

1. Letter from Art Luby – MVS Drug and Alcohol Testing

Back to Trainin

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JOHN F. O'DONNELL
(1907-1993)

60 East 42nd Street
Suite 1022
New York, N.Y. 10165
(212) 370-5100

MEMORANDUM

TO: Moe Biller and Don Ross

FROM: Art Luby

DATE: November 30, 1994

RE: MVS Drug and Alcohol Testing Regulations

Last summer the USPS issued new drug and alcohol testing regulations specifying a program of random, post accident, and reasonable suspicion testing. All employers of persons operating motor vehicles over the interstate highway system and holding commercial drivers licenses were required to implement the same program by the Omnibus Drug and Alcohol Testing Act of 1991.

In reviewing the USPS guidelines, our goal was to make sure they did no more testing than they were absolutely required to do by the statute and by the regulations issued by the Department of Transportation. In addition, we fought to reserve full rights to contest any discipline issued as a result of the tests. These goals have been met. The USPS guidelines lay out the minimum necessary to comply with the regulations and, by virtue of a letter sent by Bill Downes to President Biller we have reserved full right to contest any discipline. There is, therefore, no basis for an Article 19 challenge.

On the other hand, there should be no misunderstanding that the program, is onerous and will lead to the discharge of a number of employees. For example, while we have reserved the right to grieve any discipline, the USPS takes the position that a positive test for an illegal substance (i.e. drugs, but not alcohol) is grounds for discharge. This sort of thing will have to be fought out on a case by case basis, although the experience in the private sector is that arbitrators are not sympathetic to operators of vehicles in public transportation who test positive.

AML:khl

Back to Training Handouts

2. December 6, 1994 Letter from William Downes to Moe Biller

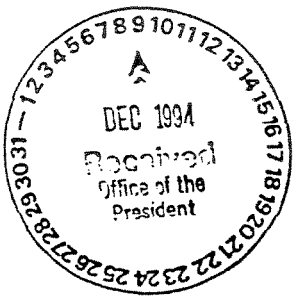
Back to Trainin

LABOR RELATIONS

UNITED STATES POSTAL SERVICE
475 L'ENFANT PLAZA SW
WASHINGTON DC 20260-4100

Z717419635

December 6, 1994



Mr. Moe Biller
President
American Postal Workers
Union, AFL-CIO
1300 L Street, N.W.
Washington, DC 20005-4128

Dear Moe:

This letter is a follow up to several meetings with Don Ross, Director, Motor Vehicle Craft, and Peter Sgro of my staff, regarding proposed procedures that will be employed by the Postal Service to implement the Omnibus Transportation Testing Act of 1991.

After numerous discussions on this issue and some revisions made after receiving the APWU's input, it was agreed by the parties that the Postal Service proposed policy appears in concert with the law.

It is recognized that the APWU will not challenge the proposed policy based on the understanding that it has not waived any of its rights provided by the collective bargaining agreement. This includes the ability to contest through the grievance/arbitration procedure any specific disciplinary action taken against an employee as a result of the new policy, including discipline issued after an employee declined to sign a "last chance" agreement as provided in the new policy.

If there are any questions related to this matter, please contact Mr. Sgro at (202) 268-3824.

Sincerely,

William J. Downes

William J. Downes
Manager
Contract Administration APWU/NPMHU
Labor Relations

94 DEC 14 P4:06

MOTOR VEHICLE DIVISION APWU

Back to Training Handouts

3. December 6, 1994 Letter from Peter A. Sgro to Donald Ross

Back to Trainin

LABOR RELATIONS

UNITED STATES POSTAL SERVICE
475 L'ENFANT PLAZA SW
WASHINGTON DC 20260-4100

MOTOR VEHICLE DIVISION
APWU

December 6, 1994

'94 DEC -9 A11:16

Mr. Donald A. Ross
Director, Motor Vehicle Division
American Postal Workers
Union, AFL-CIO
1300 L Street, N.W.
Washington, DC 20005-4128

Dear Mr. Ross:

This letter is a follow up to your November 3 correspondence requesting a meeting to further discuss the Department of Transportation's (DOT) drug and alcohol testing regulations for Postal Employees with a Commercial Drivers License (CDL).

This letter is to confirm that a meeting was held on November 7 which addressed and resolved the APWU's concerns related to the proposed Postal Service program for complying with the DOT regulations.

I would like to thank you for your assistance, input and cooperation in establishing a viable program to ensure compliance with the act and a safe work environment for our employees.

If there are any further questions, do not hesitate to contact me at (202) 268-3824.

Sincerely,

Peter A. Sgro
Labor Relations Specialist
Grievance and Arbitration
Labor Relations

Back to Training Handouts

4. Common Questions Answered – D.O.T. Drug & Alcohol Rules

Back to Trainin

Logistics

UNITED STATES POSTAL SERVICE

March 31, 1995

Area Managers, Human Resources
Managers, Distribution Networks
Managers, Transportation and Networks
Managers, Vehicle Maintenance Facilities
Managers, Plant Maintenance
District OHNAs
District EAP Coordinators

SUBJECT: Common Questions Answered -- DOT Drug & Alcohol Rule

In the past several weeks as the subject program has been implemented, there were several recurring questions that required addressing. Other questions have been posed by the APWU. What follows are some of the most frequently asked questions and the corresponding answers. We hope this is helpful to you.

1. Q: What are the consequences if an affected employee refuses to test?
   A: If an employee refuses to test, it is treated as a positive test and the employee is treated the same as if s/he had tested positive. **There is no suspension of the Commercial Driver's License for testing positive.**

2. Q: Two breath tests are required to determine if a person has a prohibited alcohol concentration. Will the person conducting the test use one or two evidential breath testing devices?
   A: One machine is used. The machines are calibrated daily as well as after a positive test.

3. Q: If the test is positive, may an employee use annual leave or sick leave?
   A: Initially, an employee who tests positive will be placed in an emergency off-duty status. The employee may apply for annual or sick leave after the initial appointment with the Substance Abuse Professional (SAP) has been scheduled. The employee may also apply for annual or sick leave while undergoing treatment, actively involved or waiting for entry into a rehabilitation program. The type of approved leave will be decided by local management.

4. Q: Will the Postal Service allow employees who test positive for drugs or alcohol concentration above 0.04 and *are in a rehabilitation program*, work in a non safety-sensitive assignment?
   A: This management decision will depend on the type of rehabilitation program and the availability of non safety-sensitive work. The employee would need to successfully complete the return-to-duty requirements listed in the Management Instruction (Appendices D and/or E as applicable) at minimum.

5. Q: A driver is advised that s/he must report for an alcohol and drug test within two hours of an accident. Will the driver stay on the clock until after the test, no matter how long it takes? Will the driver be given a drug and an alcohol test?
   A: The driver will remain on the clock until the tests are administered. Both tests will be given.

6. Q: If an employee is sent for reasonable suspicion testing, and tests negative for alcohol, why would the employee be placed in a non-duty status?
   A: Reasonable suspicion testing is testing for both alcohol and drug abuse. An employee that tests negative for alcohol may instead be under the influence of an illegal substance. It would be imprudent to allow that employee access to their safety-sensitive job. That is also why the employee will remain in a non-duty status until the results of the drug test are returned.

7. Q: Who are the contact persons for this program?
   A: *Field personnel should contact local management in the specific field of inquiry.* This may be the local Transportation Manager, VMF Manager, Labor Relations Manager, District Occupational Health Administrator (OHNA), or the District EAP Coordinator. Field management may contact USPS Headquarters for issues that need clarification or can not be resolved at the local level. At the national level, the contacts are Bob Bodziock (202-268-3553) for Transportation, Colin Dunning (202-268-3575) for Vehicle Maintenance, Tom Valenti (202-268-3831) for Labor Relations, Dr. David Reid III (202-268-3697) for Medical, and Dr. John Kurutz (202-268-3729) for the Employee Assistance Program.

8. Q: In a return-to-duty situation, will the employee take both an alcohol and drug test?
   A: If the employee tested positive for alcohol, s/he will be required to take a return-to-duty alcohol test. If the employee tested positive for drugs, s/he will be required to take a return-to-duty drug test.

9. Q: If an employee is selected randomly for both a drug and alcohol test, will these be administered on the same day?
   A: Yes.

10. Q: On the Breath Alcohol Testing (BAT) form, is refusal of the employee to sign considered a positive test? Is this the law?
    A: There are two places for the testing employee to sign on the BAT form. Refusal in Step 2 will be regarded as refusal to take the test, which will be treated as a positive test. This is the law. A refusal by the testing employee to sign in Step 4 will not be considered a refusal to test.

11. Q: Do our employees have to initial a log book, or do all our Evidential Breath Testing (EBT) devices have a printer?
    A: All our EBT devices are equipped with printers.

12. Q: Will union representatives be allowed to accompany employees going for testing?
    A: No.

13. Q: Will employee be allowed to use their annual or sick leave after testing positive?
    A: Once an employee has a scheduled appointment with the SAP s/he will be allowed to use annual or sick leave.

14. Q: If an employee is mandated by a SAP to attend a treatment facility, who pays?
    A: *The employee attending the treatment facility is responsible for payment.* S/he may be assisted in this by their personal insurance.

15. Q: How would a *Last Chance* agreement work if an employee *slips* and voluntarily turns himself in to EAP or seeks treatment outside the postal service?
    A: An employee who has returned to work under the auspices of a Last Chance agreement will be terminated if s/he tests positive during a random or follow-up test.

16. Q: If an employee feels s/he has a drug or alcohol problem and voluntarily goes to EAP for help, will this employee be disciplined under Article 16 for Drug and Alcohol use?
    A: An employee that is required to have a CDL to perform their job function would be treated as a positive test employee until s/he can return to work under the requirements outlined in the Management Instruction.

RECEIVED

MOTOR VEHICLE CRAFT
SOUTHERN REGION-APWU

17. Q: When a SAP conducts an assessment, will it always be face to face with the employee?
A: In a guidance letter from the United States DOT Office of the Secretary of Transportation (October 11, 1994), the Department of Transportation's interpretation of its regulations states, "face-to-face interaction between a SAP and an employee is an essential part of the evaluation our rule requires. . . Consequently, an evaluation consisting solely of contact by telephone, computer, fax, correspondence, etc., is not permitted under our rules. Direct, personal, face-to-face interaction is mandatory." The Postal Service will comply with this ruling.

18. Q: What is the experience criteria for a SAP who is a psychologist or social worker?
A: The experience level requirement is the same for other SAPs. See attached qualification descriptions.

19. Q: What will be the training program for the SAP?
A: It is not necessary to train the SAPs in assessment as they were hired for their expertise in making assessments in the normal course of their counseling activities. All SAPs providing service to the Postal Service have been provided information packets detailing the procedures to follow for the USPS.

20. Q: How many SAPs will the Postal Service have?
A: The U.S. Public Health Service will provide at least two SAP qualified professionals for each USPS district.

21. Q: How many SAPs are currently qualified?
A: As of March 7, 1995, there are 160 qualified SAPs available throughout the Postal Service. A list is attached.

22. Q: What is the maximum time an employee must wait for a SAP assessment after testing positive for alcohol and/or drugs?
A: In a worst case scenario, it could take several days.

Thank you for your continued support of this program. Please address any additional questions to the appropriate Field or Headquarters contact.

Robert E. Earlewine, Jr.
Manager
Modal Operations & Requirements

Dr. David Reid III
National Medical Director

Attachments

cc: Mr. Orlando, Manager, Logistics
Mr. Dunning, Manager Vehicle Maintenance
Mr. Jacobs, Manager, Field Human Resource Policy
Ms. Ong, Labor Relations
Mr. Spates, Manager, Delivery
Mr. Valenti, Labor Relations
Vehicle Program Analysts - Area Offices

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MOTOR VEHICLE CRAFT
SOUTHERN REGION-APWU

5. Letter from Robert Pritchard on Postal Employees and D.O.T. Regulations

Back to Trainin

American Postal Workers Union, AFL-CIO

1300 L Street, NW, Washington, DC 20005

September 11, 1996

Robert C. "Bob" Pritchard
Director, MVS Division
1300 L Street, NW
5th Floor
Washington, DC 20005
(202) 842-4240

Dear MVS Director:

When dealing with the Postal Service, we face the persistent problem of the applicability of the Department of Transportation (DOT) regulations. It seems that whenever we confronted the Postal Service, when it was to their advantage, we were under DOT regulations, and if it was not to their advantage, we were not under DOT regulations.

I have enclosed a copy of a letter from the Department of Transportation, Office of Motor Carrier Research and Standards. This letter makes it clear that the USPS is not under DOT regulations, except in two areas. Postal employees who operate vehicles 26,001 pounds or larger must have a commercial drivers license (CDL) of the appropriate type. All CDL holders are subject to random drug and alcohol tests.

All other DOT regulations are not applicable to the Postal Service. However, the federal government encourages the Postal Service to abide by them. This means that the USPS can impose a higher or lower standard than DOT does in any area.

We are sending this letter out to you to try to alleviate problems in the future concerning DOT regulations being forced upon Motor Vehicle Craft employees in your installation.

MVS employees may drive beyond the total number of hours allowed by DOT. As you are probably aware, many drivers do this during the Christmas rush. In fact, mechanics have been pressed into transporting bulk quantities of mail during Christmas rush for fourteen to sixteen hours a day.

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Moe Biller
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Executive Vice President
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Secretary-Treasurer
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Industrial Relations Director
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[illegible]tor, Clerk Division
James W. Lingberg
Director, Maintenance Division
Robert C. Pritchard
Director, MVS Division
George N. McKeithen
Director, SDM Division

Regional Coordinators
Leo F. Persails
Central Region
Jim Burke
Eastern Region
Elizabeth "Liz" Powell
Northeast Region
Terry Stapleton
Southern Region
Raydell R. Moore
Western Region

Back to Training Handouts

U.S. Department
of Transportation
Federal Highway
Administration

MOTOR VEHICLE
DIVISION
APWU

'96 AUG -5 A11 :50

400 Seventh St., S.W.
Washington, D.C. 20590

JUL 31 1996

Refer to: HCS-20

Mr. Robert C. Pritchard, Director
Motor Vehicle Division
American Postal Workers Union
AFL-CIO
1300 L Street, NW.
Washington, D.C. 20005

Dear Mr. Pritchard:

Thank you for your July 24, 1996, letter to Mr. Robert Redmond inquiring about the applicability of the Federal Motor Carrier Safety Regulations (FMCSRs) to employees of the United States Postal Service.

As Mr. Redmond discussed with Mr. Joe Williams, Assistant Director, Motor Vehicle Division, in a telephone conversation on July 23, 1996, the FMCSRs [see 49 CFR 390.3(a)] apply to all employees, employers, and commercial motor vehicles , which transport property or passengers in interstate commerce. There are several limited exceptions to the applicability of the FMCSRs [see 49 CFR 390.3(f)], including transportation performed by the Federal government, unless otherwise specifically provided in the FMCSRs.

Therefore, employees of the United States Postal Service are exempted from meeting these requirements, except for the commercial driver's license, if needed (see 49 CFR 383.3), and the controlled substances and alcohol use and testing (see 49 CFR 382.103) rules. While Federal employees are exempted from the majority of the FMCSRs, we have encouraged Federal employers to voluntarily adopt the requirements to promote safety on our Nation's highways.

For your information, we have enclosed copies of the FMCSRs sections referenced above. I hope this information is helpful to you.

Sincerely yours,

Sam W. P. Rea, Jr., Acting Director
Office of Motor Carrier
Research and Standards

Enclosures

Back to Training Handouts

6. Letter from Samuel M. Pulcrano on Scheduling Employee for Drug Testing

Back to Trainin

LABOR RELATIONS

UNITED STATES
POSTAL SERVICE

March 9, 1998

Robert C. Pritchard
Director, Motor Vehicle Services Division
American Postal Workers Union,
AFL-CIO
1300 L Street, NW
Washington, DC 20005-4107

Dear Mr. Pritchard:

This letter is in response to your inquiry of February 4 concerning the Postal Service's position on the availability of an employee to be scheduled for random and follow-up drug testing under the Drug and Alcohol Testing Program.

Employees in the program are scheduled for testing when they are performing safety-sensitive functions which include:

a. all time at an employer or shipper, plant, terminal, facility, or other property, or on any public property; waiting to be dispatched, unless the driver has been relieved from duty by the employer;

b. all time spent inspecting equipment as required by Federal Highway Administration regulation; or otherwise inspecting, servicing, or conditioning any commercial motor vehicle at any time;

c. all time spent at the driving controls of a commercial motor vehicle in operation;

d. all time, other than driving time, in or upon any commercial motor vehicle, except time spent resting in a sleeper berth;

e. all time loading or unloading a commercial motor vehicle, supervising or assisting in the loading or unloading, tending a vehicle being loaded or unloaded, remaining in readiness to operate the vehicle, or in giving or receiving receipts for shipments loaded or unloaded; and

f. all time repairing, obtaining assistance, or remaining in attendance upon a disabled vehicle.

Designated responsible management officials receive weekly random drug (and alcohol) testing rosters which list employees to be tested during that one week period. The employees on the roster can be scheduled for the test(s) at any time and on any day the employee is on duty performing safety-sensitive functions during that week. This includes any period in which the driver is actually performing, ready to perform, or

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Back to Training Handouts

immediately available to perform any safety-sensitive function. Those employees who are required to submit to follow-up testing are also subject to the same availability criteria.

Employees at home while on approved leave should not be required to go to a medical facility to submit to random or follow-up testing for drugs.

If you have any questions regarding the foregoing, please contact Joyce Ong of my staff at (202) 268-6248.

Samuel M. Pulcrano
Manager
Contract Administration (APWU/NPMHU)

7. Notifying Medical Review Officer (M.R.O.) of Prescribed Medications

Back to Trainin

APWU

American Postal Workers Union, AFL-CIO

1300 L Street, NW, Washington, DC 20005

May 6, 1998

Dear MVS Director:

There have been increasing problems in the field concerning employees who are taking prescription medication, and what is required of them by the Postal Service. In many places, when an employee fails his or her drug test, he or she is either not informing the Medical Review Officer (MRO), or the Postal Service is not accepting this information from the employee.

Enclosed is a letter from the Postal Service stating that employees are not required to inform their supervisors of all medications they are taking. However, when the MRO gives the employee an opportunity to provided possible alternate medical explanations for a positive drug test, the employee should, not must, but should notify the MRO if they are taking any medication that may cause a positive result.

This may be helpful to the field because there are many people who are currently in a removal situation where one party or the other did not accept it, and there was confusion concerning the rights of the membership.

On March 16th, Assistant Craft Director Joe Williams sent you a letter saying that all employees must be on the clock while they are being drug or alcohol tested. Unfortunately, a copy of that letter was not inserted into that mailing, so I have enclosed it with this letter.

We hope this is beneficial to you in the ever continuing struggle to clarify the terms that employees are tested under.

Yours in union solidarity,

Joe Williams
Assistant Director
Motor Vehicle Division

Robert C. Pritchard
Director
Motor Vehicle Division

RCP:JEW:oeg/opeiu #2/afl-cio/enclosures (2)

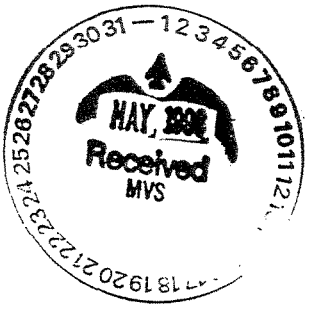
Back to Training Handouts

8. D.O.T. Physicals and Commercial Drivers License

Back to Trainin

LABOR RELATIONS

UNITED STATES
POSTAL SERVICE



April 29, 1998

Robert C. Pritchard
Director, Motor Vehicle Services Division
American Postal Workers Union,
AFL-CIO
1300 L Street, NW
Washington, DC 20005-4107

Dear Mr. Pritchard:

This is a preliminary response to your letter of April 6 requesting information relating to the laboratories that perform drug testing for the Postal Service's Drug and Alcohol Testing Program. We will review your inquiry and provide a written response.

Employees in safety-sensitive positions are not required to inform their supervisor of all medications they are taking. However, when the Medical Review Officer (MRO) gives the employee an opportunity to provide possible alternate medical explanations for a positive drug test, the employee should notify the MRO if they are taking any medication that may cause a positive drug result.

As you have previously been advised, questions regarding Mark Sather's positive drug tests are more suited for resolution by the parties at the local level. The union's inquiries regarding the specific testing procedure performed in Mr. Sather's case should be redirected to the local level.

If you have any questions regarding the foregoing, please contact Joyce Ong at (202) 268-6248.

Sincerely,

Samuel M. Pulcrano
Manager
Contract Administration (APWU/NPMHU)

475 L'ENFANT PLAZA SW
WASHINGTON DC 20260-4100

Back to Training Handouts

LOGISTICS

UNITED STATES
POSTAL SERVICE

June 19, 1998

AREA MANAGERS, HUMAN RESOURCES
MANAGERS, DISTRIBUTION NETWORKS
MANAGERS, TRANSPORTATION AND NETWORKS
MANAGERS, VEHICLE MAINTENANCE FACILITIES
MANAGERS, PLANT MAINTENANCE

SUBJECT: Commercial Drivers License (CDL) Employee Physicals
(Supersedes all previous memoranda)

To be consistent with the trucking industry and our own contract driver requirements, U.S. Postal Service policy voluntarily parallels Department of Transportation (DOT) requirements as they pertain to physicals for Commercial Drivers License (CDL) employees. These requirements include issuance of a Medical Card.

Every CDL employee is required to have a standard DOT CDL physical every two years. The physical will be scheduled by postal management, occur on the clock at a Postal Service Medical Unit or Postal Service Contract Medical Facility, and be paid for by the Postal Service. CDL drivers are not authorized to have their DOT physicals conducted at medical facilities other than Postal Medical Units or Postal Contract Medical facilities.

PS Form 2485 is no longer used for DOT physicals. The Physical Examination Form, which meets the DOT requirements and is available from J.J. Keller Company, is to be used by medical personnel for the physicals. When the CDL employee passes the DOT physical, a Medical Card will be issued by medical personnel. This card is evidence that enables an employee to meet physical requirements when renewing his/her CDL with state licensing authorities. If a CDL employee fails the physical, management must immediately confer with Labor Relations personnel at the local level for guidance regarding the next applicable procedure.

If you have any questions regarding this policy, contact John Hernandez at 202-268-3553. Thank you for your support in ensuring a safer CDL driver workforce. With your help, we can keep the Postal Service and our employees free from risk of serious consequences.

for J. Michael Krop
Manager
Transportation Modal Operations
and Requirements

cc: Mr. Eddy

475 L'ENFANT PLAZA SW
WASHINGTON DC 20260-7137
(202)268-4320
FAX: (202)268-5327

Back to Training Handouts

9. August 1, 2001 Changes to U.S. Department of Transportation Drug & Alcohol Testing

Back to Trainin

BDA July 16, 2001

CORPORATE OFFICES

CLIENT SERVICES

Alcohol & Drug Policy Management Briefing
Employee Orientation
Supervisory Training
Training the Trainer
Support Materials
for Testing Consultation
BDA Medical Review Services
Proficiency Specimens
Laboratory Audit
Quality Assurance Audit
EA Employee Assistance Services
Expert Testimony
Telemonitoring
Investigative Services

John Hernandez
Transportation Modal Operations
and Requirements
United States Postal Service
Room 7900
475 L'Enfant Plaza, S.W.
Washington, D.C. 20260-7241

Dear John:

The new changes to the U. S. Department of Transportation (DOT) drug and alcohol testing regulations (49 CFR part 40), which go into effect August 1, 2001, include provisions which may have substantial and immediate impact on Postal Service employees who are covered by these regulations, and their management.

Five of the most important changes that impact on covered employees are that:

• ***during a urine specimen collection, the employee (donor) must turn all pockets inside out and display their contents to the collector.*** **Failure to do so will result in the test being declared a refusal to test," which is a violation of the DOT Rule and will result in the employee immediately being removed from safety-sensitive work.** Since the current Rule imposes no such requirements, covered employees will be faced with a new, and clearly more intrusive invasion of privacy, and may balk at compliance. There is no appeal from the collector's decision that the employee has refused to submit to testing nor provision for subsequent review by management.

• collectors are given much broader discretionary powers regarding ending a test because of employee conduct designed to frustrate or interfere with the testing process. This includes – but is not limited to - any physical contact, verbal threats, cursing or otherwise harassing the collector, or leaving the collection area. It also includes a collector's belief that an employee is trying to adulterate or substitute a specimen. Postal Service collectors are receiving extensive training about behavior that will not be tolerated and which will immediately result in test cessation. Any termination of a test for employee misconduct is a refusal to submit to testing, and as such, a violation of the Rule. (Again, no review by management and no appeal.)

Back to Training Handouts

• if the specimen temperature is less than 90 degrees F or more than 100 degrees F the collector must immediately direct the employee to provide, under direct observation, another urine specimen.

• after certain instances the collector, at his/her *sole* discretion, may require the donor to provide an observed specimen collection, as for example, if the collector observes material from a donor's pockets which appears to be brought to the collection site with the intent to alter the specimen. If the donor refuses to submit to the observed collection, it is a refusal to test.

• **once notified by management for any test, including all random tests, the employee must *immediately* report for testing** subject only to safety procedures to immediately shut-down machinery, secure equipment and so forth. It is our opinion that "immediately" should be defined *as soon as possible, but no more than 20 minutes after* management has given the employee notice of testing. ***If the employee does not report for testing, or does not report in a timely manner, under the regulation this is considered a refusal and is a violation of the Rule.*** Employees have no right to delay a test (drug or alcohol) while awaiting union representation, completing any existing work, etc.

Further, management does not have authority to excuse an employee once the employee has been notified of testing. If the employee claims a personal emergency or personal illness, the employee must be directed to report for a test after which he/she may be released for personal reasons or may be seen by a physician. If the employee is adamant about seeing a physician, he/she should be escorted immediately to a Postal Service Medical Officer or contract physician for examination. (If the employee refuses to be seen by a Postal Service physician/contract physician and does not present him/herself for testing, management must declare a refusal to submit to testing.) If the examination indicates that the employee does not have an acute condition which would preclude the completion of testing without jeopardizing his/her health, the employee shall be considered to have refused to cooperate with the testing process and as such to have refused.

As with the current Rule, all violations require that the employee be immediately removed from safety-sensitive work and provided information on where to get help if he/she has a drug and/or alcohol problem. If management wants to return the employee to safety-sensitive work, then *management* must refer the employee to a Substance Abuse Professional (SAP) for evaluation.

The practical impact of this SAP referral is that an employee who violates the Rule will not be permitted to perform safety-sensitive work for a week or more, since there must be a face-to-face interview with the SAP, the employee must successfully complete that part of any plan which is required before the SAP will permit consideration for return to work, the SAP must conduct a second face to face evaluation to ensure the employee's compliance, and the employee must pass a return to duty test. Written evaluations (both initial and follow-up) must be furnished to management in all cases.

Management also has many more expressly prescribed requirements under the new Rule. Among the most important are that:

1. Each Postal Service location which has covered employees ***must*** have a *designated employee representative (DER)* who can take regulatory action after positive alcohol and drug tests and certain other situations.

2. There is an affirmative responsibility for management to schedule all covered employees selected for random testing. While this was implied under the current regulations, under the new Rule failure to schedule tests is a Rule violation and could subject the manager as well as the Postal Service to sanctions including civil fines – or in the case of flagrant violations, the suspension of covered motor carrier operations.

3. Management must be notified in all instances where an employee has refused to submit to testing and must be prepared to take immediate action regarding removing the employee from safety sensitive work.



4. Management must order an observed collection test in every instance where the laboratory has reported a specimen as "invalid" and the donor has no medical explanation for the result.



5. Employees must be notified of all test results. A policy of "assume a negative test unless we tell you" is not acceptable.

6. Management must make all referrals to SAPs.

IMMEDIATE RECOMMENDATIONS:

1. Ensure that all covered employees have been provided with information as required by 49 CFR 382.601, and that each employee has signed a receipt for the information and that such receipt is in the driver's qualification file. Attached is a suggested letter which we urge be immediately sent to all Postal Service locations which have covered employees.

2. Ensure that all supervisors of covered employees have received the requisite two-hour supervisory training required under 49 CFR 382.603. District OHNAs can provide this training for you. This training is required before a supervisor can order a reasonable suspicion test.

3. Establish an internal monitoring system to ensure that (a) all employees scheduled for random testing are notified and (b) management will immediately receive notification from the testing facility if the employee did not "immediately" report or did not report at all.

4. Insure that DERs understand the breadth of their responsibilities.

Back to Training Handouts

I would be very pleased to talk with you further about additional specific actions which you may want to take to ensure a smooth implementation of the new Rule.

Sincerely yours,



RICHARD H. BUCHER, Ph.D.
Senior Vice President

Enclosure

CC: National Medical Director

10. Case Manager for D.O.T. Cases Changed from E.A.P. to D.E.R.

Back to Trainin

Magellan Behavioral Health

Memo

To: Staff Counselors

From: David Lee, Ph.D.

Date: 08/06/01

Re: DOT Changes

The new DOT regulations took effect August 1, 2001. This impacts the way the DOT cases will be handled for employees with commercial drivers' licenses who test positive for alcohol or drugs. DOT cases will no longer be "case managed" by the EAP or fall under the auspices of the EAP. The USPS is also changing its procedures so that DOT cases will no longer be managed by the EAP. Under the new regulations the Designated Employer Representative or (DER) will be responsible for arranging substance abuse professional (SAP) services for all employees who test positive for alcohol or drugs. Under the new regulations, the DER will be the district contact with whom the SAP interacts on DOT cases. As of August 1, 2001 the USPS EAP counselors are no longer the contact person for DOT cases. The new DOT regulations took effect August 1, 2001. This impacts the way the DOT cases will be handled for employees with commercial drivers' licenses who test positive for alcohol or drugs. DOT cases will no longer be "case managed" by the EAP or fall under the auspices of the EAP. The USPS is also changing its procedures so that DOT cases will no longer be managed by the EAP. Under the new regulations the Designated Employer Representative or (DER) will be responsible for arranging substance abuse professional (SAP) services for all employees who test positive for alcohol or drugs. Under the new regulations, the DER will be the district contact with whom the SAP interacts on DOT cases. As of August 1, 2001 the USPS EAP counselors are no longer the contact person for DOT cases.

For DOT clients who began receiving services prior to August 1st, the SAP should now deal directly with the district DER. This applies to all issues except billing. The SAP should send a written copy of all communication to the DER or the district occupational health nurse administrator. SAPs should continue to send their invoices to the same location as they do now for services rendered through September 30,

Back to Training Handouts

11. D.E.R. Responsible for Notifying Substance Abuse Professional (S.A.P.)

Back to Trainin

SURFACE OPERATIONS

UNITED STATES
POSTAL SERVICE

September 27, 2001

MANAGERS, TRANSPORTATION AND NETWORKS

SUBJECT: Substance Abuse Professional (SAP)

Effective immediately, managers, transportation networks will be the designated employee representative (DER) for the USPS Drug and Alcohol testing program in their respective offices.

The responsibilities of the DER are to ensure that all employees, who possess a Commercial Driving License (CDL) are compliant with current Department of Transportation (DOT) regulations pertaining to Drug and Alcohol Testing as indicated in the attachments. The key responsibility of the DER is to notify the Substance Abuse Professional (SAP) in the event that their employee tests positive for drugs or alcohol. *This is a substantial* change from previous directives involving *Employee Assistance* Program (EAP) notification when an employee tested positive for drugs/alcohol.

As indicated in previous communications, *calls or emails regarding drug and alcohol testing* should be directed to your local medical office, or Occupational Health Nurse Administrator as *appropriate*. Another resource available to you is the DOT website. The site provides contemporary information on the Drug and Alcohol Testing Program for CDL drivers. The website address is http://www.fmcsa.dot.gov/safetyprogs/drugs/engtesing.htm.

If you have questions, please contact Fred Brill at 202-268-5216 or Francis Eddy at 202-268-2756.

George R. Moose
Manager

Attachment

cc: Mr. Pajunas
Managers, Distribution Networks (Area)

475 L'ENFANT PLAZA SW
WASHINGTON DC 20260-7133
202-268-4382
FAX: 202-268-3584

Francis Eddy

Back to Training Handouts

UNITED STATES
POSTAL SERVICE

All information related to, gathered, or transferred in the following process is Confidential and meets the Privacy Act requirement

Subject: SAP (Substance Abuse Professional) Protocol for notification and communication

APPLICANTS:

The Medical Review Officer (MRO) and/or Occupational Health Nurse Administrator (OHNA) will notify and advise Applicants who have a positive drug screen that they can be given a referral to the ***National SAP Network (NSAPN)***, at no charge to the USPS. The MRO and/or OHNA will provide the applicant with the *NSAPN 1-800-879-6428 telephone number. Alternately, the applicant* may be directed to a local agency.

CAREER EMPLOYEES:

1. The Designated Employee Representative (DER), currently the Transportation Network Manager, will notify NSAPN of the employee's status by initially calling: 1-800-879-6428 (NSAPN will fax to the DER a confirmation letter, which is to be completed and faxed back to *NSAPN)*

2. The employee will be given the 1-800 # above at the time of the *referral* to contact NSAPN.

3. Information to be provided to NSAPN
   - a. Employee's full name
   - b. Home & Work phone number *Where to call employee?*
   - c. Employee's home address
   - d. Job Title
   - e. Social Security number & DOB
   - f. Testing results: Employee tested positive for (name of drug/date) (DER should have copy of DOT notification report, MRO Lab results and/or BAT form
   - g. Why drug test was done: Random Employment Reasonable Suspicion Post accident Follow-up
   - h. Any corrective action taken by USPS
   - i. Medical review officer's name & Phone / Fax number:
   - j. District Occupational Health Nurse (OHNA) name & phone/ fax number & address

4. NSAPN will provide the employee with a confirmed appointment with a SAP within 24-48 hours.

5. *Face to Face evaluation with SAP and employee*

   a. SAP initial evaluation

   - The SAP will request a 'Release Authorization' from the employee
   - DER and OHNA will receive from the SAP the initial written SAP *recommendation report.*

   b. NSAPN will provide the DER and OHNA with verbal evaluation outcomes such as:

   - Referral to assistance program
     - Ongoing monitoring and reporting compliance
     - Notification if non-compliant
     - Program completion (return to work date)
     - Work related recommendations for follow-up testing
     - *Recommendation if post-treatment (after care) is needed*
   - Referral to educational program
     - Community based program

Back to Training Handouts

6. NSAPN will maintain confidential case files of all SAP records on client referrals for five years. If employee has separated from USPS, the report will be sent to client's new employer if requested by a release of information.

12. Policy Change Regarding Substance Abuse Professional – April 2004

Back to Trainin

om: Brill, Frederick M - Washington, DC
ent: Thursday, April 29, 2004 1:07 PM
o:
ubject: FW: SAP Regulation per CFR for USPS

nportance: High

Feel free to use the information as you feel is appropriate.

Fred M Brill

-----Original Message-----
From: Brill, Frederick M - Washington, DC
Sent: Wednesday, April 21, 2004 8:19 AM
To: Timko, Bonnie J - Washington, DC - Contractor
Subject: FW: SAP Regulation per CFR for USPS
Importance: High

FYI

FMB

-----Original Message-----
From: Brill, Frederick M - Washington, DC
Sent: Tuesday, April 20, 2004 4:14 PM
To: Bailey, Milton E - Landover, MD; Pozycki, Judith - Eastern Area Office; Infanger, Daniel J - Bloomingdale, IL; Carolan, Robert J - New York, NY; Gaudet, Richard P - Windsor, CT; Minshew, David A - Richmond, CA; Ramos, Frank - Memphis, TN; Lee, Dwayne D - Dallas, TX; Gabenski, Mike T - Denver, CO
Cc: Lambson, Rodney J - Washington, DC
Subject: SAP Regulation per CFR for USPS
Importance: High

Afternoon all,

There is a change in policy regarding SAP (Substance Abuse Professional) protocal. This message is purely a heads up - and complete set of guidelines will follow shortly.
The policy is to go into effect immediately.

Excerpted from CFR 40

287 What information is an employer required to provide concerning SAP services to an employee who has a DOT drug and alcohol regulation violation?

As an employer, you must provide to each employee who violates a DOT drug and alcohol regulation a listing of SAPs readily available to the employee and acceptable to you, with names addresses, and phone numbers. There will be a followup E Mail from Linda Jones - contractor at Clinnet that clearly shows the Web Site that an employee should use.

289 Are employers required to provide SAP and treatment services to employees?
As an employer, you are not required to provide a SAP evaluation or any subsequent recommended education or treatment for an employee who has violated a DOT drug and alcohol regulation.

Back to Training Handouts

13. Management Instruction: P.O. 720-95-2

Back to Trainin

UNITED STATES POSTAL SERVICE

Management Instruction

Alcohol and Drug Testing of Employees With a Commercial Driver's License

This management instruction describes Postal Service policies for compliance with the Omnibus Transportation Employee Testing Act of 1991 and implementing regulations issued by the Federal Highway Administration (FHWA).

Date	9/29/95
Effective	9/29/95
Number	PO-720-95-2
Obsoletes	PO-720-95-1

Allen R. Kane
Vice President
Operations Support

CONTENTS

Alcohol and Drug Testing of Employees With a Commercial Driver's License

Background

Scope

Prohibitions On Drug and Alcohol Use and Possession

Required Testing

Alcohol and Drug Testing Procedures

Sanctions For Violation of the Rules

Notices and Recordkeeping

Training and Education

Implementation Procedures

Appendix A—Post-Accident Alcohol and Drug Test

Appendix B—Reasonable Suspicion Testing Checklist

Appendix C—Notification of a Positive Alcohol Test at 0.02 BAC and Above But Less than 0.04 BAC

Appendix D—Notification of a Positive Alcohol Test at 0.04 BAC and Above

Appendix E—Notification of a Positive Drug Test Following Random Testing

Appendix F—Notification of a Positive Drug Test Following Reasonable Suspicion or Post-Accident Testing

Appendix G—Employees Incapacitated While on Duty

Appendix H—Sample Letter for Placing an Employee on Emergency Off-Duty Status

BACKGROUND

The Omnibus Transportation Employee Testing Act of 1991 requires alcohol and drug testing of safety-sensitive employees in the motor industry. The Department of Transportation (DOT) published rules mandating anti-drug and alcohol misuse prevention programs in February 1994. The February 1994 rules required that implementation begin on January 1, 1995, for employers of fifty or more safety-sensitive employees. A safety-sensitive employee, for the purpose of these regulations, may be defined as one who holds a Commercial Driver's License (CDL) and who drives a vehicle in excess of 26,000 pounds Gross Vehicle Weight Rating (GVWR).

Employers are responsible for implementing and conducting the testing programs. They may do this by using their own employees, by using contract services, or by joining together in a consortium that provides services to all member companies. Law enforcement officers will not conduct the tests as part of roadside or other inspections. Under certain circumstances, however, post-accident tests conducted by law enforcement will be acceptable. Any individual who conducts the testing must be trained to operate the evidential breath testing (EBT) device and be proficient in the breath testing procedures. The National Medical Director of the Postal Service will administer the testing program.

SCOPE

The DOT regulations cover approximately 10,000 Postal Service employees who are required to operate commercial motor vehicles (vehicles in excess weight of 26,000 GVWR) during the performance of their jobs. To operate such a motor vehicle, the driver must possess a valid state CDL. Employees who are required to maintain a CDL as part of their responsibilities with the Postal Service are covered by this law

Back to Training Handouts

and these regulations. The DOT regulations will most often include motor vehicle operators and tractor trailer operators. Also included are many vehicle mechanics, certain plant maintenance mechanics, and a smaller number of city carriers, clerks, and mailhandlers.

Prohibitions On Drug and Alcohol Use and Possession

The FHWA regulations provide that no covered employee shall report for duty or remain on duty requiring the performance of safety-sensitive functions while having an alcohol concentration of 0.02 BAC (blood-alcohol concentration) or greater. Safety-sensitive functions are defined as those functions listed in 49 CFR 395.2(1) through (7), including time spent driving, loading and unloading, performing vehicle inspections, waiting to be dispatched, etc. In addition, no management official having actual knowledge that a covered employee has a BAC of 0.02 or greater shall permit the covered employee to perform any safety-sensitive functions. Further, a driver may not possess alcohol while on duty or while operating a commercial motor vehicle. This includes possession of any medication containing alcohol.

The regulations prohibit a covered employee from using alcohol while performing safety-sensitive functions or within four hours prior to performing safety-sensitive functions. A driver may not use alcohol within eight hours following an accident, or until the driver takes an alcohol test, whichever comes first. The use of overtime is authorized to ensure compliance if necessary.

A covered employee may not report for duty or remain on duty requiring the performance of safety-sensitive functions when the employee uses any controlled substance, except when he or she is under a doctor's care and the doctor advises the employee in writing that the substance does not adversely affect the driver's ability to operate a commercial motor vehicle safely. This documentation must be retained in the driver's medical folder for five years.

Required Testing

Pre-employment Testing

Pre-employment testing is confined to drug testing only and is conducted before applicants are hired or after an offer to hire, but before the employee actually performs safety-sensitive functions for the first time. Drug testing is also required when an employee transfers to a safety-sensitive position from a non-safety-sensitive position.

Back to Training Handouts

Post-employment Testing

The regulations also require drug and alcohol testing in the areas of post-accident, reasonable suspicion, random, return-to-duty and follow-up testing according to the following guidelines:

Post-accident

Testing is conducted after certain vehicular accidents as specified by FHWA regulations.

Reasonable Suspicion

Reasonable Suspicion testing is conducted when a trained supervisor or trained management official observes behavior or appearance that is characteristic of alcohol and/or drug use.

Random

Random testing is conducted on a random unannounced basis just before, during, or just after performance of safety-sensitive functions.

Return-to-duty and follow-up

Return-to-duty and follow-up testing is conducted when an individual who has violated the prohibited alcohol and/or drug standards returns to duty and performs safety-sensitive duties. Follow-up tests are unannounced and at least 6 tests must be conducted in the first 12 months after a driver returns to duty. Follow-up testing may be extended for up to 60 months following return to duty.

Alcohol and Drug Testing Procedures

Alcohol Testing

The DOT regulations require breath testing using evidential breath testing (EBT) devices approved by the National Highway Traffic Safety Administration (NHTSA). The NHTSA periodically publishes a list of approved devices in the *Federal Register*. Two breath tests are required to determine if a person has a prohibited alcohol concentration. A screening test is conducted first. Any result less than 0.02 alcohol concentration is considered a "negative" test. If the alcohol concentration is 0.02 or greater, a second confirmation test must be conducted. The covered employee and the individual conducting the breath test (called a breath alcohol technician) complete the alcohol testing form to ensure that the results are properly recorded. The confirmation test, if required, must be conducted using an EBT that prints out the results, date and time, a sequential test number, and the name and serial number of the EBT. The confirmation test results determine any actions taken. The

Back to Training Handouts

DOT regulations include training and proficiency requirements for the breath alcohol technicians (BAT), quality assurance plans for the breath testing devices (including calibration requirements for a suitable test location), and protection for driver test records.

Drug Testing

Drug testing is conducted by analyzing an employee's urine specimen. The analysis is performed at laboratories certified and monitored by the Department of Health and Human Services (DHHS). The employee provides a urine specimen in a location that affords privacy. Medical personnel (Postal Service employees or contract services) seal and label the specimen, complete a chain-of-custody document, and prepare the specimen and accompanying paperwork for shipment to a drug testing laboratory. The specimen collection procedures and chain-of-custody document ensure that the specimen's security, proper identification, and integrity are not compromised. The Omnibus Act requires that drug testing procedures for commercial motor vehicle drivers include split specimen procedures. Each urine specimen is subdivided into two bottles labeled as a "primary" and a "split" specimen. Both bottles are sent to the laboratory. Only the primary specimen is opened and used for the urinalysis. The split specimen bottle remains sealed and is stored at the laboratory. If the analysis of the primary specimen confirms the presence of illegal, controlled substances, the employee has seventy-two hours to request the split specimen be sent to another DHHS certified laboratory for analysis. This split specimen procedure essentially provides the employee with an opportunity for a "second opinion".

Sanctions For Violation of the Rules

Alcohol

Covered employees who violate alcohol prohibitions must, under the law and implementing regulations, be immediately removed from safety-sensitive functions. Covered employees who have a positive alcohol test in excess of 0.04 BAC cannot return to safety-sensitive duties until they have been evaluated by a substance abuse professional (SAP), have complied with any recommended treatment, have passed a re-evaluation by the SAP, have passed an evaluation by the Medical Review Officer (MRO), and have passed a return-to-duty alcohol test. Follow-up testing to monitor the employee's abstinence from alcohol use will be required. Covered employees who have any alcohol concentration (defined as 0.02 – 0.039) when tested just before, during, or just after performing safety-sensitive functions must also be removed from performing such duties for twenty-four hours. The employee may return to duty at the beginning of his or her next shift after the twenty-four hours have elapsed. Before beginning the next work shift after the twenty-four hours have elapsed, the employee must pass an alcohol test (defined

Back to Training Handouts

as less than 0.02 BAC). If the employee is referred for a SAP evaluation, the employee must give permission to the MRO for the release of alcohol test results to the SAP. Discipline, if any, shall be administered in accordance with Article 16 of the National Agreement (see Appendices A, B, C, and D).

Drugs/Controlled Substances

As with an alcohol misuse violation, a covered employee must be removed from safety-sensitive duty if he or she has a positive drug test result. An employee cannot return to safety-sensitive duties until he or she has been evaluated by a substance abuse professional (SAP) and the MRO, complied with recommended rehabilitation, and has a negative result on a return-to-duty drug test. Follow-up testing to monitor the employee's continued abstinence from drug use will be required. If the employee is referred for a SAP evaluation, the employee must give permission to the MRO for the release of the drug testing results to the SAP. Discipline, if any, shall be administered in accordance with Article 16 of the National Agreement (see Appendices E and F).

Notices and Recordkeeping

Notification

Before performing an alcohol or drug test under the new regulations, the employer must notify the driver in writing that the test is being conducted under the Federal Highway Administration (FHWA) regulations. The random selection document generated by the contractor will serve as the required notice.

Records

Types of Records Retained

Employers (or other contracted designees) are also required, as under the current drug testing rules, to retain certain records on their testing programs. The following records must be kept for a period of five years:

1. Records of all driver alcohol tests resulting in a concentration of 0.02 or greater, and all verified, positive drug tests.
2. Documentation of refusals to take drug or alcohol tests.
3. Documentation on calibration of EBT devices.
4. Driver evaluations and referrals.
5. A copy of each annual calendar year summary of testing.

Back to Training Handouts

Records Concerning Collection Process

Employers must also maintain for two years all records related to the alcohol and drug collection process (for breath and urine testing) and records related to required training. Records regarding negative drug and alcohol tests must be maintained for a period of one year. Records must be available for inspection on two business days notice at the employer's principal place of business upon request by an FHWA representative. Access to records must be controlled so that the information in the records is not released to any unauthorized person.

Annual Summary

If an employer is notified in January by the FHWA, the employer must submit the annual summary to the FHWA by March 15. Otherwise, a carrier is not required to report its testing results to the FHWA. The report generally will include the following information:

1. The number and types of tests conducted.
2. The number of drivers subject to testing.
3. The number of positive and negative results.
4. The number of applicants rejected for failing an alcohol or drug test.
5. The number of refusals to submit to tests.
6. The number of supervisors who received alcohol or controlled-substances-training.
7. The number of drivers who were returned to duty after a prior violation of the drug or alcohol rules.

Release of Information

The Postal Service may not release information on a driver's testing record to any other party without written permission from the driver. The new rules, however, specifically require the Postal Service to direct a driver applicant to provide a testing record as a condition of employment and submit to a DOT drug screen prior to employment. The rules also require an employer to obtain, pursuant to a driver's written consent, information on the driver's positive alcohol or drug tests and refusals to be tested, within the prior two years. Moreover, the rules provide that a prior employer must make these records available to a subsequent employer upon receipt of a written request from a driver.

Back to Training Handouts

Training and Education

Each employer must provide to all drivers educational materials that explain the drug and alcohol requirements and the employer's policies and procedures with respect to meeting those requirements. These materials must include the following information:

1. The identity of the person designated by the employer to answer questions about the materials.
2. The categories of employees subject to these regulations and a description of safety-sensitive functions and prohibited driver conduct.
3. The circumstances under which drug and alcohol testing will be conducted and the testing procedures.
4. The consequences of failing or refusing to take a test.
5. Information on the effects of drug and alcohol use on an individual's health, work, and personal life and on methods of intervening when a problem is suspected.

The educational materials also contain information on the Postal Service's own policies and disciplinary procedures on the possession and use of alcohol or drugs. All supervisors designated to make the determinations of reasonable suspicion for purposes of requiring a drug or alcohol test must undergo at least sixty minutes of training on alcohol misuse and at least an additional sixty minutes of training on drug use. The training must cover the physical, behavioral, speech, and performance indicators of controlled substances. Generally, this training will be performed in each Customer Service and Sales District by the District Occupational Health Nurse Administrator (OHNA).

Implementation Procedures

Pre-employment

As a condition of employment, the Postal Service will require the applicant to take a pre-employment drug test as part of the overall personal *suitability determination and a DOT drug screen at the time of the physical.* Testing at this time will be handled by the local personnel office as part of the hiring procedure. The Postal Service must also obtain, pursuant to a driver's written consent, information on the driver's positive alcohol or drug tests and refusals to be tested, within the prior two years. The local personnel office will issue a release of information form to the *applicant for signature. This form will be sent to the previous employer(s)* and returned to the MRO. Only applicants who have been determined as "drug-free" are eligible for selection consideration.

Back to Training Handouts

Post-Accident Alcohol and Controlled Substances Testing

As soon as practicable following an accident involving a U.S. Postal Service commercial motor vehicle, the driver of the vehicle shall be tested if any one of the following conditions are met:

1. The accident involved a fatality; **OR**
2. The driver received a citation under state or local law for a moving violation arising from the accident and the accident involved an injury requiring treatment away from the scene; **OR**
3. The driver received a citation under state or local law for a moving violation arising from the accident and the accident involved the towing of any involved vehicle.

If any of the above conditions occur, the supervisor shall immediately require the driver to report to the designated medical testing facility for an alcohol and drug test. The employee may be escorted to the testing site if conditions warrant (see Appendix A).

Reasonable Suspicion

Reasonable suspicion drug and alcohol testing is conducted when a trained management official observes that the behavior or the appearance of a safety-sensitive employee is characteristic of and consistent with drug and/or alcohol usage. Management will use the Reasonable Suspicion Testing Checklist (Appendix B) as an aid in determining if such testing is justified.

Note: If testing is warranted, immediately escort the employee to the designated medical testing facility. This action will ensure the safety of the employee, the co-workers, and the general public.

Random Alcohol and Drug Testing

The employee is randomly selected for testing from a "pool" of all affected employees subject to testing. The testing dates and times are unannounced and are with unpredictable frequency throughout the year. Each year, the number of random tests will equal at least 25 percent of all the safety-sensitive employees for alcohol and at least 50 percent of all the safety-sensitive employees for drugs. These regulations provide for adjustments to the annual random testing rate in future years based on the violations industry-wide as determined by FHWA.

Return-to-duty and Follow-Up Testing

In order to return to duty, a negative test result is required when an individual who has violated the prohibited alcohol conduct standards desires to return to work. Return-to-duty testing resulting in a negative test is also one of the requirements for returning to duty following a positive drug test. Follow-up testing is required in both instances to monitor the

Back to Training Handouts

driver's continued abstinence from alcohol and/or drug use. Follow-up tests are unannounced and at least six tests must be conducted in the first twelve months after a driver returns to duty. Follow-up testing may be extended for up to sixty months following return to duty.

Notification of Positive Tests

Notification

Employees are to be notified of positive tests as follows:

1. Positive alcohol test greater than 0.02 BAC but less than 0.04 BAC (see Appendix C).
2. Positive alcohol test equal to or greater than 0.04 BAC (see Appendix D).
3. Notification of a Positive Drug Test Following Random Testing (see Appendix E).
4. Notification of a Positive Drug Test Following Reasonable Suspicion or Post Accident Testing (see Appendix F).

Following Notification

1. Guidelines –Employees incapacitated while on duty (see Appendix G).
2. Sample letter for placing an employee on emergency off-duty status (see Appendix H).

Back to Training Handouts

Appendix A—Post-Accident Alcohol and Drug Test

Note: This checklist applies only to postal drivers who operate commercial motor vehicles in the performance of duty.

First of all, determine if the driver or anyone else involved in the accident needs medical attention and satisfy yourself that medical assistance has been requested.

Then, determine if a DOT Post-Accident Alcohol and Drug Test must be performed by completing the following:

STEP 1

a. Did the accident involve a fatality?

❑ Yes ❑ No

b. Did the driver receive a citation under state or local law for a moving violation arising from the accident whereby an injury to anyone involved in the accident required treatment away from the scene?

❑ Yes ❑ No

c. Did the driver receive a citation under state or local law for a moving violation arising from the accident whereby an involved vehicle was towed away from the scene?

❑ Yes ❑ No

If you answered "Yes" to either a, b, or c above, you *must* conduct a DOT Post-Accident Alcohol and Drug Test. If you answered "No" to all of the above, you do not need to conduct a DOT Post-Accident Alcohol and Drug Test. Indicate your decision below.

❑ Test Required ❑ No Test Required (Go to Step 3.)

STEP 2

Determine if state or local law enforcement has been notified. Further establish what determination has been made by state or local law enforcement regarding the disposition of the accident (e.g., moving violation citation).

If law enforcement has been notified and medical assistance for the Postal Service driver, if any, has been requested and provided, the next steps are:

a. ❑ Advise the driver not to consume any alcohol for the next eight hours or until after testing is completed.

b. ❑ Advise the driver that he or she must report for an alcohol and drug test as soon as possible, but not later than two (2) hours from notification.

c. ❑ Advise the employee of the location of the nearest alcohol and drug testing facility. (Have the driver escorted to the testing facility if conditions warrant.)

STEP 3

Complete this checklist report, make comments as necessary, and file it.

Accident Date_____ Driver's Name_____

Reporting Office_____ Name of Official Completing This Form_____

Back to Training Handouts

Appendix B—Reasonable Suspicion Testing Checklist

Use the following checklist to document any situation that you believe is caused by alcohol or other drugs.

Remember, you do not need to be absolutely certain that alcohol or drugs are involved. If you think there is a reasonable chance of alcohol or drug involvement, you must refer the employee for a reasonable suspicion test.

Name of Employee Observed:_____ Date Observed:_____

Location of Observation(s):_____ Time of Observation(s)_____

1. **Must order a reasonable suspicion test if *one* of the following is observed during the course of duty.**

   - ☐ I smelled what I know to be the smell of alcoholic beverages on the covered employee.
   - ☐ The covered employee was sleeping on the job.
   - ☐ The covered employee struck another person.
   - ☐ The covered employee struck company equipment/vehicle with an object (e.g., stick, wrench), or intentionally damaged or destroyed company equipment/vehicle.
   - ☐ The covered employee was driving a vehicle or operating machinery erratically (e.g., weaving on the road, speeding, hitting objects with the vehicle, not following safety rules, etc.).
   - ☐ The covered employee swayed back and forth when standing still; had to catch his balance repeatedly.
   - ☐ The covered employee weaved or had to continually catch balance when walking.
   - ☐ Other (please specify) _____

2. **Must order a reasonable suspicion test if *two* or more of the following are observed during the course of duty.**

   The covered employee:

   - ☐ Refused to respond when spoken to.
   - ☐ Yelled at people for no reason.
   - ☐ Was constantly arguing with co-workers.
   - ☐ Made persistent errors on the job (describe in comment section below).
   - ☐ Other (please specify) _____

Comments: What did you see? Be specific and descriptive.

_____

_____

_____

_____

continued on next page

Back to Training Handouts

Appendix B—Reasonable Suspicion Testing Form (pg. 2)

Use the following checklist to document your actions where the use of alcohol or other drugs may have affected the performance of any individual performing a safety-sensitive task or may have affected the safety of the workplace. Indicate in the check box that you have completed each step, as applicable.

1. ☐ Notify your manager that you are directing an employee to have a reasonable suspicion drug and/or alcohol test. Do not delay the test if you cannot reach your manager.
2. ☐ Inform the employee that he or she is to report to the medical unit (or contract medical site) for reasonable suspicion drug and alcohol testing. Have him or her escorted to the designated testing site.

At the testing site:

3. ☐ Record date and time of arrival at specimen collection site.

   Date:_____ Time:_____

4. ☐ Request a reasonable suspicion test for alcohol and/or drugs if the suspicious conduct occurred just prior to, during, or after the employee was performing safety-sensitive work.
5. ☐ If the suspicious conduct occurred at another time, order a reasonable-suspicion drug test only.
6. ☐ If the employee refused to submit to testing, *he or she is regarded as having tested positive and* action is taken according to procedures described in Appendix D or F. Remind the employee that refusal to go for an alcohol and/or drug test will result in immediate removal from the safety-sensitive job (DOT requirement) and subject him or her to discipline for failure to obey a lawful directive. Indicate here if the employee refused to take the reasonable suspicion test. Refused. ☐
7. ☐ Whether the employee takes the test or not, ensure that the employee is taken to a safe place until he or she is cleared by the Medical Review Officer (MRO) or is taken home in accordance with guidelines for dealing with employees incapacitated while on duty (see Appendix G).
8. ☐ *Complete this checklist, file a copy in your confidential records, and send the original to your* manager.
9. ☐ Statement: I have received required DOT Drug and Alcohol Testing supervisory training as required by federal regulations.

   Signature:_____

   Name:_____ Date:_____

In the instance of item 4 above, if the employee tests positive for alcohol, follow Appendix C or D as appropriate. If the employee tests negative for alcohol, the employee should be placed in a non-duty status, without pay, (see Article 16.7 of the National Agreement) while waiting for the results of the drug test. The supervisor must send a letter to the employee confirming the action taken. See sample letter in Appendix H. The specimen must be sent by Express Mail for quick turnaround.

In the instance of item 5 above, the employee should be placed in a non-duty status, without pay, (see Article 16.7 of the National Agreement) while waiting for the results of the drug test. The supervisor must send a letter to the employee confirming the action taken. See sample letter in Appendix H. The specimen must be sent by Express Mail for quick turnaround.

If the test is returned negative in both instances, the employee may return to duty.

If the test is returned positive, refer to Appendix F—Notification of a Positive Drug Test following Reasonable Suspicion or Post-Accident Drug Testing.

Back to Training Handouts

Appendix C—Notification of a Positive Alcohol Test at 0.02 BAC and Above But Less than 0.04 BAC

The following procedures apply when notifying an employee of the results of a positive alcohol test at 0.02 BAC but less than 0.04 BAC.

1. The employee is notified of the test results by the Breath Alcohol Technician (BAT).
2. The BAT instructs the employee to remain in the testing area pending the arrival of a person to escort the employee back to the work location.
3. The BAT immediately notifies the manager on duty of the test results and requests that a member of the managerial team, or security, come and escort the employee back to the duty area.
4. The supervisor arranges to have the employee escorted back to the work location by managerial personnel or security.
5. The supervisor should immediately inform the employee that he or she is placed in an "emergency, off-duty status, without pay" according to Article 16.7 of the National Agreement. This action is taken on the basis of a report of a positive alcohol test of 0.02 BAC – 0.039 from the BAT and the potential that the test result indicates possible impairment, based on recognized scientific studies, and since retaining the employee on duty may be injurious to self or others.
6. The employee will be advised that he or she may not perform any safety-sensitive duties for a period of at least twenty-four hours from the time of manager notification. The employee should be further notified that before the beginning of the next duty shift after the twenty-four-hour period, the employee must pass an alcohol test. Failure to pass a return-to-duty alcohol test after the twenty-four-hour period (continuing to test at 0.02 or above) will result in a mandatory referral to the Substance Abuse Professional (SAP) for an evaluation.
7. The supervisor will encourage the employee to seek voluntary assistance from the Employee Assistance Program (EAP) and will provide the employee with the telephone number of the local EAP contact.
8. If the employee appears impaired, follow the guidelines set forth in Appendix G, Employees Incapacitated While on Duty.
9. The supervisor must send a letter to the employee confirming the action taken in Paragraph 5 above. See sample letter in Appendix H.
10. Discipline, if any, shall be administered in accordance with Article 16 of the National Agreement.

Back to Training Handouts

Appendix D—Notification of a Positive Alcohol Test at 0.04 BAC and Above

The following procedures apply when notifying an employee of the results of a positive alcohol test at 0.04 BAC and above:

1. The Breath Alcohol Technician (BAT) notifies the employee of the test results.
2. The BAT instructs the employee to remain in the testing area pending the arrival of a person to escort the employee back to the work location.
3. The BAT immediately notifies the manager on duty of the test results and requests that a member of the managerial team or security personnel, come and escort the employee back to the duty area.
4. The manager arranges to have the employee escorted back to the work location by managerial or security personnel.
5. The supervisor should immediately inform the employee that he or she is placed on "emergency, off-duty status, without pay" according to Article 16.7 of the National Agreement. This action is taken on the basis of a report of a positive alcohol test of 0.04 BAC or greater from the BAT and the potential that the test result indicates possible impairment, based on recognized scientific studies, and since retaining the employee on duty may be injurious to self or others.
6. If the employee appears impaired, follow the guidelines set forth in Appendix G, Employees Incapacitated While on Duty.
7. The supervisor must send a letter to the employee confirming the action taken in step 5 above. See sample letter in Appendix H.
8. The supervisor sends a separate letter to the employee directing the employee to report to the Substance Abuse Professional (SAP) for evaluation. The supervisor indicates to the employee that a requirement for continuing employment in his or her current position requires an evaluation by the SAP, successful completion of any recommended treatment or rehabilitation regimen, an SAP participation evaluation prior to return to duty, a medical evaluation by a medical review officer prior to return to duty, passing a return-to-duty alcohol test, and being placed in an unannounced follow-up testing program for a period of up to sixty months.
   a. If the employee agrees to be evaluated by a SAP, the supervisor should immediately call the SAP contact (Employee Assistance Program counselor) and set up an appointment at the earliest time possible. Advise the employee of the date, time, and place of the SAP evaluation. The Medical Review Officer (MRO) will have those employees who test positive sign a release form allowing the MRO to communicate the alcohol test results to the SAP.
   b. If the employee declines a SAP evaluation or does not successfully complete all of the terms of the SAP recommended treatment and rehabilitation regimen, the supervisor will send the employee a letter which outlines the following options:
      (1) The employee may request reassignment to a non-driving position for which he or she is qualified. If the employee does not make such a request, or is not qualified for another position;
      (2) The employee may resign. If the employee does not resign nor is reassigned;
      (3) The employee will be given a letter of removal.

   The supervisor should consult with Labor Relations regarding the specifics of this letter.
9. Discipline, if any, shall be administered in accordance with Article 16 of the National Agreement.

Back to Training Handouts

Appendix E—Notification of a Positive Drug Test Following Random Testing

The following procedures apply when notifying an employee of the results of a positive drug test following random testing:

1. Medical personnel will inform management that the employee must contact the Medical Review Officer (MRO).
2. Management has the employee contact the MRO as soon as possible. The MRO informs the employee that he or she has tested positive for drugs and determines if there is a medical reason for the positive test. If there is a medical reason, the tests counts as a negative test. If there is not a medical reason, the MRO informs the employee of the employee's right to appeal the drug test with a split specimen test. Under the law, employee notification of the drug test result will be in writing and the employee has 72 hours to request a split specimen test. The MRO has the employee sign a copy of the notification indicating the beginning time and date of the 72-hour-notification. If the employee refuses to sign, the MRO notes that refusal on the form, completes the date and time information, and signs to verify the information was received by the employee. The split specimen test, if requested, will be paid for by the Postal Service. The MRO will have those employees who test positive sign a release form allowing the MRO to communicate the drug testing results and any subsequent drug testing to the Substance Abuse Professional (SAP).
3. Management will immediately place the employee on "emergency, off-duty status, without pay" according to Article 16.7 of the National Agreement on the basis of a report of a positive drug test result from the MRO, and the MRO determination that the employee is unfit for duty because of the positive drug test. The employee is informed that he or she is placed in an "emergency off-duty status, without pay".
4. If the split specimen test returns positive, or if no split test is requested, management continues at step 5. If the split specimen test is returned negative, the employee is returned to duty immediately and made whole. The notice of placement letter is removed from the employee's file.
5. If, at any time, the employee appears impaired, follow the guidelines set forth in Appendix G, Employees Incapacitated While on Duty.
6. Send a letter to the employee confirming the action taken in Step 3 above. A sample letter is provided in Appendix H.
7. Following any necessary investigation, the supervisor will determine what additional action should be taken.
   a. Discipline, up to and including removal, may be given in accordance with normal disciplinary procedures. Supervisors should consult with Labor Relations on proposed disciplinary action.
   b. If the supervisor decides not to remove the employee, then the supervisor will inform the employee that in addition to any discipline that has been determined by the supervisor, the employee must sign a "last chance agreement" which, at minimum, will include the following provisions:
      (1) The employee agrees to an evaluation by a SAP at the first available appointment.
      (2) The employee agrees to follow the treatment and rehabilitation recommendations of the SAP and understands that he or she must successfully complete the treatment and rehabilitation regimen.

continued on next page

Back to Training Handouts

Appendix E—Notification of a Positive Drug Test Following Random Testing (pg. 2)

(3) The employee must pass a re-evaluation by the SAP, who will provide his or her recommendations to the MRO for approval.

(4) The employee must pass a return-to-duty evaluation by the MRO.

(5) The employee must pass a return-to-duty drug test.

(6) The employee agrees to unannounced follow-up testing to be determined by the MRO and the SAP for a period not to exceed sixty months.

(7) The employee agrees that any positive drug test during the follow-up test period, including random, for cause, or post-accident tests, will result in immediate removal from the Postal Service.

8. If the employee declines to sign a "last chance agreement" or does not successfully complete all of the terms of the "last chance agreement," management should consider removing the employee from the Postal Service.
9. If the employee agrees to be evaluated by a SAP, the supervisor should immediately call the SAP contact (EAP counselor) and set up an appointment at the earliest time possible.
10. Discipline, if any, shall be administered in accordance with Article 16 of the National Agreement.

Back to Training Handouts

Appendix F—Notification of a Positive Drug Test Following Reasonable Suspicion or Post-Accident Testing

The following procedures apply when notifying an employee of the results of a positive drug test following reasonable suspicion or post-accident testing:

1. Medical personnel will inform management that the employee must contact the Medical Review Officer (MRO).
2. Management has the employee contact the MRO as soon as possible. The MRO informs the employee that he or she has tested positive for drugs and determines if there is a medical reason for the positive test. If there is a medical reason, the tests counts as a negative test. If there is not a medical reason, the MRO informs the employee of the employee's right to appeal the drug test with a split specimen test. Under the law, employee notification of the drug test result will be in writing and the employee has 72 hours to request a split specimen test. The MRO has the employee sign a copy of the notification indicating the beginning time and date of the 72-hour-notification. If the employee refuses to sign, the MRO notes that refusal on the form, completes the date and time information, and signs to verify the information was received by the employee. The split specimen test, if requested, will be paid for by the Postal Service. The MRO will have those employees who test positive, sign a release form allowing the MRO to communicate the drug test results and the results of any subsequent testing to the Substance Abuse Professional (SAP).
3. Management will immediately place the employee on "emergency, off-duty status, without pay" according to Article 16.7 of the National Agreement on the basis of a report of a positive drug test result from the MRO and the MRO determination that the employee is unfit for duty because of the positive drug test. The employee is informed that he or she is placed in an "emergency off-duty status".
4. If the split specimen test returns positive, or if no split test is requested, management continues at step 7. If the split specimen test is returned negative, the employee is returned to duty immediately.
5. If, at any time, the employee appears impaired, follow the guidelines set forth in Appendix G, Employees Incapacitated While on Duty.
6. Send a letter to the employee confirming the action taken in Step 3 above. A sample letter is provided in Appendix H.
7. Following any necessary investigation, the supervisor will determine what additional action should be taken as follows:
   a. Discipline, up to and including removal, may be given in accordance with normal disciplinary procedures. Supervisors should consult with Labor Relations on proposed disciplinary action.
   b. If the supervisor decides not to remove the employee, then the supervisor will inform the employee that in addition to any discipline that has been determined by the supervisor, the employee must sign a "last chance agreement" which, at minimum, will include the following provisions:
      (1) The employee agrees to an evaluation by the SAP at the first available appointment.
      (2) The employee agrees to follow the treatment and rehabilitation recommendations of the SAP and understands that he or she must successfully complete the treatment and rehabilitation regimen.

continued on next page

Back to Training Handouts

Appendix F—Notification of a Positive Drug Test Following Reasonable Suspicion or Post-Accident Testing (pg. 2)

(3) The employee must pass a re-evaluation by the SAP, who will provide his or her recommendations to the MRO for approval.

(4) The employee must pass a return-to-duty evaluation by the MRO.

(5) The employee must pass a return-to-duty drug test.

(6) The employee agrees to unannounced follow-up testing to be determined by the MRO and the SAP for a period not to exceed sixty months.

(7) The employee agrees that any positive drug test during the follow-up test period, including random, for cause, or post-accident tests, will result in immediate removal from the Postal Service.

8. If the employee declines to sign a "last chance agreement" or does not successfully complete all of the terms of the "last chance agreement," management should consider removing the employee from the Postal Service.

9. If the employee agrees to be evaluated by a SAP, the supervisor should immediately call the SAP contact (EAP counselor) and set up an appointment at the earliest time possible.

10. Discipline, if any, shall be administered in accordance with Article 16 of the National Agreement.

Back to Training Handouts

Appendix G—Employees Incapacitated While on Duty

The following procedures must be used to assist an employee who becomes is incapacitated while on duty.

Included in this category are situations where employees may be ill, over-medicated, intoxicated, or otherwise unable to perform their assigned duties, either at the time they enter on duty or during the course of their assigned tour. The determination of incapacity must be made by the employee's supervisor or manager and documented for future reference. The supervisor should not attempt to diagnose the condition, but should merely document observed behavior. Based on the information provided in this document, the supervisor or manager should use one or more of the procedures outlined below:

1. If the situation appears to be life-threatening, call 911. Otherwise, immediately contact the medical personnel designated to respond to medical situations for your facility. This may be an on-site health unit or a contract clinic. If you are unsure of who the designated medical personnel are, contact your District Occupational Health Nurse Administrator (OHNA) for information and assistance.
2. A family member or the person listed as an emergency contact for the employee should be contacted to provide safe transport of the employee either to a medical facility or home.
3. If the employee refuses efforts at transportation and attempts to drive his or her own vehicle while incapacitated, local law enforcement should be called.
4. In the event an employee becomes belligerent, postal police, local security, or local law enforcement should be contacted.
5. Upon return to duty, the manager or supervisor should inquire if there is a legitimate medical explanation for the incapacitation and/or if the employee has made arrangements for medical care. If there is no reasonable medical basis given, the manager or supervisor should formally refer the employee to the Employee Assistance Program counselor for an initial appointment on the clock. The manager or supervisor has the option of requesting that the employee undergo a fitness-for-duty examination prior to the employee returning to duty.

Supervisors and managers should use discretion when implementing these guidelines so as not to seriously affect the security of the postal facility or the movement of mail.

Back to Training Handouts

Appendix H—Sample Letter for Placing an Employee on Emergency Off-Duty Status

Date:

Subject: Emergency Placement in Off-Duty Status

To: Employee's Name
Job Title
Social Security Number
Office/Installation

You are hereby notified that you (will be) **or** (were) placed in an off-duty status without pay *effective (time and date)* and will continue in this status until you are advised otherwise.

The reason(s) for this action are:

(Briefly state the specific reason(s) for the placement in off-duty status, e.g., striking/threatening a fellow employee; use of, or testing positive for alcohol or drugs.) (Set forth the reason with sufficient specificity and detail so that *the employee is adequately able to respond.* Use names, dates, times, etc., so that the employee may have a fair opportunity to refute the notice without requiring further information.)

Retaining you on duty may result in damage to U.S. *Postal Service property, loss of mail* or funds, or injury to yourself or others.

You have the right to file a grievance under the *Grievance/Arbitration procedure* set forth in Article 15 of the National Agreement within 14 days of your receipt of this notice.

_____
Signature of Supervisor

_____
Name of Supervisor (Printed)

Signature of Employee below denotes receipt of the original:

_____
Employee's Signature

_____
Date

_____
Time

Back to Training Handouts

14. Last Chance Agreements – Theory and Practice

Back to Trainin

THEORY AND PRACTICE OF LAST CHANCE AGREEMENTS

LAST CHANCE AGREEMENTS:

SAVIOR FOR SALVAGEABLE EMPLOYEES? OR, TIME BOMB POSTPONING THE INEVITABLE?

LAST CHANCE AGREEMENTS:

SAVIOR FOR SALVAGEABLE EMPLOYEES? OR, TIME BOMB POSTPONING THE INEVITABLE?

I.

INTRODUCTION

Last chance agreements may present the most difficult of dilemmas for arbitrators. Seen as providing an extra opportunity for an employee to rehabilitate himself, labor practitioners may view such agreements as being one-sided and of dubious enforceability. From a union advocate's prospective, presentation of a lop-sided last chance agreement to an employee by the company presents the unique dilemma to the union. Should it deprive the employee of an opportunity to return to work when the agreement on its face is overbearing? Or should it go along with the company's proposal, knowing full well that it has not heard the last of this employee's woes. The arbitrator's treatment of last chance agreements must adequately support the parties' intentions while continuing to pay homage to the contract and the employee's due process rights. This difficult endeavor is set forth in the current case law.

II.

ENFORCEABILITY OF LAST CHANCE AGREEMENTS

Arbitrators are of two distinct schools on the enforceability of last chance agreements. First, tradition minded arbitrators may view the last chance agreement as a guide to the to the parties' intent only and consider themselves bound by explicit contract

Back to Training Handouts

language on just cause. The other school focuses more specifically on the language of the last chance agreement and considers it an express declaration of the parties' construction of just cause for that particular employee, or a side contract. Under this view, the arbitrator deprives himself the authority to hear the grievance if the employee's conduct violates the last chance agreement.

III.

CRITERIA FOR ENFORCEABILITY

Under either view, certain criteria are helpful in determining enforceability.

A. DUE PROCESS AND UNDUE INFLUENCE.

Arbitrators must first determine under what circumstances the grievant signed the last chance agreement, whether it was unilateral and whether the union participated in negotiating it with him. Absent a showing that the agreement was entered into voluntarily and with knowledge of its implications, the arbitrator may refuse to enforce it.

B. DETERMINE WHETHER THE GRIEVANT COMMITTED THE CONDUCT IN QUESTION.

The company is accusing the grievant of certain conduct violate of the last chance agreement. The arbitrator must determine from the facts whether the grievant committed the conduct in question. The parties have bargained for the arbitrator's assessment of the facts of the case.

C. DETERMINING WHETHER THE CONDUCT IS A VIOLATION OF THE LAST CHANCE AGREEMENT.

Was the last chance agreement itself violated and was the conduct in question specifically governed by the last chance agreement? This inquiry involves determining if

Back to Training Handouts

the violation is trivial or substantive.

D. DETERMINING WHETHER THE REQUIREMENTS OF THE LCA ARE REASONABLE.

In this regard, the tension with the just cause agreement must be examined. An overreaching LCA may be voided.

E. APPROPRIATENESS OF TERM.

How long was the last chance agreement? Was there no time limit on it? Was the term excessive?

IV.

DRUG AND ALCOHOL ABUSE ISSUES

Last chance agreements specifically worded to apply to drug and alcohol abuse situations allow the grievant rehabilitation he might not otherwise be entitled to. The last chance agreement may be seen as setting forth exactly what the parties agreed to be just cause in the situation of a drug or alcohol abuser. However, overreaching last chance agreements going beyond the realm of drug or alcohol abuse invite a determination of unenforceability. The company may not want to return the employee to work who has an acknowledged drug or alcohol problem, but if it does it wants to be sure that he remains drug free and the company will not have to deal with this problem again. Such concerns can be met by narrowly drafted last chance agreements.

V.

ATTENDANCE RELATED PROBLEMS

Attendance related last chance agreements placing the grievant under different

Back to Training Handouts

rules than his cohorts are often overturned by arbitrators. Thus, even with a last chance agreement, a specific medical excuse by an employee for absence, or a minute or two late clock-in, may not be deemed a violation of the last chance agreement. Probation on attendance, lasting forever, with any violation, may be overreaching.

VI.

DRAFTING PITFALLS

The last chance agreement that lasts forever, is purported not to be subject to the grievance procedure and which waives all legal rights the grievant and the union, and that allows the employer in its sole discretion to discharge an employee the next time he clocks in a minute late, is not likely to be enforced in arbitration. Arbitrators of either school as to enforceability of last chance agreements will find a way to obviate the harsh results such agreements might provide.

The better approach is to narrowly define the terms that the agreement to meet the concerns of management with regard to the specific conduct complained of. That is, if the conduct complained of was drug or alcohol abuse, confine the applicability of the agreement to such conduct. If the focus is attendance, define exactly what offense attendance conduct will be cause for subsequent termination under the last chance agreement. In this way, the arbitrator will be presented with consonance, rather than discord between the CBA and the LCA.

Back to Training Handouts

VII.

DECISION MAKING PITFALLS

A. DECIDING CAUSE.

Advocates dread getting a decision from an arbitrator *finding cause but overturning* the remedy. The courts normally hold that if an arbitrator finds cause he is then relieved of his authority under the collective bargaining agreement. The missive here really was that the company did not have cause to impose the remedy it did. But an arbitrator who finds *cause and simply modifies the remedy exceeds his authority.*

While this might seem like a semantic distinction to non-lawyers, it is an important one that the courts consider. On the other hand, the arbitrator is free to determine what the appropriate penalty is assuming cause for discharge is <u>not</u> *found, and may then feel free* to fashion a novel remedy to the extent that it believes will meet the parties' needs.

B. USURPING LAST CHANCE AGREEMENT.

Decision makers invite appellate scrutiny by simply throwing out an agreed upon last chance agreement. The arbitrator would then be dispensing his "own brand of industrial justice".

C. UNION INVOLVEMENT.

Arbitrators should determine to what extent the union was involved in drafting and agreeing to the last chance agreement. The grievant is not a party to the contract providing the arbitrator his authority; it is between the union and the company. If the company simply imposes a last chance agreement unilaterally or if the grievant signs on with the company without the union's approval, *an arbitrator should look to the contract for his guidance.*

Back to Training Handouts

D. PARTIES TO LAST CHANCE AGREEMENT.

Most troublesome last chance agreements are those in which the company imposes by simply providing the employee with a letter. This unilaterally imposed "agreement" can hardly be seen to be voluntary and is most difficult for the arbitrator to enforce when its conduct in question clearly does constitute just cause under the contract. An agreement imposed between the employer and the employee without the union's involvement or approval also presents difficulty as the union is the employer's counterpart under the contract and must agree to any narrowing of contract provisions for the employee in question. Under these circumstances, the arbitrator may also feel himself compelled to look to the contract for guidance.

E. RELATING THE CONDUCT.

The decision maker must satisfy himself if the conflict the employee is accused of is really what the parties intended when they drafted the LCA. Should a discharge of an employee for a safety glasses violation be sustained when his original LCA concerned drug use?

VIII.

CONCLUSION

Ostensibly an aid to advocates obviating the need for litigation, last chance agreements seldom turn out that way. At the time concluded, the last chance agreement may appear to benefit the employee as well as the union and the company by taking way the necessity for arbitration of a case if the employee falls off the bandwagon, yet providing him another chance. But the case law belies this result. Unions are reluctant to simply

Back to Training Handouts

deny a grievance short of arbitration based on a last chance agreement thereby depriving an employee of his claimed grievance rights and subjecting the union to a claim of duty of fair representation. Employers fairly bursting with the power and discretion afforded them under the last chance agreement, may jump the gun and fire the employee for something trivial. Advocates may thus more effectively accomplish the results intended by crafting the discipline itself imposed on the employee rather than creating a new "contract" between the employee and the company under the aegis of a last chance agreement.

Arbitrators seeking to follow through with the parties' intent and fulfilling their obligations and recognizable limitations under the collective bargaining agreement may not simply ignore the contract in favor of a one page sheet of paper crafted for the employee in question, under questionable . Accepted notions of just cause, due process and contractual limits on an arbitrator's authority require inquiry to be made as to the tension between the LCA and CBA. While more difficult than simply depriving yourself of jurisdiction, only in this way may the arbitrator make a reasoned decision not in a vacuum.

Back to Training Handouts

The removal action will be held in abeyance subject to the following conditions:

1. Prior to return to duty the grievant will submit to a drug test to be administered at the Postal Medical Unit, 3900 Crown Road. Atlanta, Georgia.

2. If the test is negative, the grievant will be returned to duty as a Motor Vehicle Operator at the start of the next pay period.

3. If the test is positive, the removal will be reinstated.

4. The entire period of absence from duty, including the period of time awaiting the results of the test will be treated as a disciplinary suspension without back pay.

5. Upon reinstatement as a result of a negative test result, the grievant will be subject to random and unannounced follow-up drug testing for a period of five (5) years as determined by Postal management. In the event that the Grievant tests positive during such period, removal action will be immediately invoked without advance notice.

6. The grievant agrees to follow the treatment and rehabilitation recommendations of the EAP and understands that he must successfully complete the treatment and rehabilitation regimen.

7. If the removal action is reinstated the grievant agrees to waive appeal rights to Arbitration, the Merit Systems Protection Board (MSPB) and any other administrative and judicial forum.

8. It is understood between the parties that this Settlement Agreement is non-precedential and may not be cited for any reason, including comparison in any other proceeding or forum.

9. It is agreed that the grievant will sign a medical release form for EAP verification purposes.

10. This settlement will resolve any and all related grievances on this matter.

I, freely sign the agreement without reservation, duress or coercion on the part of anyone. I agree to abide by the terms of this Agreement.

Grievar Date 10-23-95

Union F Date 10-23-95

Manag Date 10-27-95

Back to Training Handouts

UNITED STATES POSTAL SERVICE

July 12, 1996

SUBJECT: LAST CHANCE AGREEMENT

As a result of a Step 3 decision dated July 10, 1996, it is agreed that the Notice of Proposed Removal dated April 3, 1996, will be held in abeyance. The grievant will be placed under a Last Chance Agreement subject to the following conditions.

1. Prior to return to duty the grievant will submit to a drug test to be administered at the Postal Medical Unit, 3900 Crown Road, Atlanta, GA.

2. If the test is negative, the grievant will be returned to duty as a Motor Vehicle Operator at the start of the next pay period.

3. If the test is positive, the removal will be reinstated.

4. The entire period of absence from duty, including the period of time awaiting the results of the test will be treated as a disciplinary suspension without back pay.

5. Upon reinstatement as a result of a negative test result, the grievant will be subject to random and unannounced follow-up drug testing for period of five (5) years as determined by Postal Management. In the event that the Grievant tests positive during such period, removal action will be immediately invoked without advance notice.

6. The grievant agrees to follow the treatment and rehabilitation recommendations of the EAP and understands that he must successfully complete the treatment and rehabilitation regimen.

7. If the removal action is reinstated the grievant agrees to waive appeal rights to Arbitration, the Merit Systems Protection Board (MSPB) and any other administrative and judicial forum.

8. It is understood between the parties that this Settlement Agreement is nonprecedential and may not be cited for any reason, including comparison in any other proceeding or forum.

Back to Training Handouts

9. It is agreed that the grievant will sign a medical release form for EAP verification purposes.

10. This settlement will resolve any and all related grievances on this matter.

I, freely sign the agreement without reservation, duress or coercion on the part of anyone. I agree to abide by the terms of this Agreement.

Grievant _____ Date 7-25-96

Union 7-25-96

Management Representative 7/24/96

LABOR RELATIONS
ATLANTA BULK MAIL CENTER
UNITED STATES POSTAL SERVICE

December 09, 1997

SUBJECT: LAST CHANCE AGREEMENT IN LIEU OF NOTICE OF REMOVAL

Pursuant to the United States Postal Service's compliance with the federal Highway Administration (FHWA) Controlled Substance Use and Alcohol Misuse Prevention Program, on October 24, 1997, you were selected to take the U. S. Department of Transportation (DOT) random urinalysis drug screen. On November 17, 1997, the medical Review Office notified my office that the split specimen test result were also positive. Your positive results from this screen disqualifies you from operating any postal vehicles. You have failed to meet the DOT qualifications, Postal requirements and postal regulation set forth in the Employee and Labor Relations Manual, Section 661.55 which states "Illegal use of drugs may be grounds for removal from the Postal Service" and Section 814.2c which states that "It is the responsibility of all employees to keep physically and mentally fit to meet the requirement of the job."

You are hereby notified that you will be given a **"Last Chance Agreement"** to meet the DOT qualifications and the Rules and Regulations of the U. S. Postal Service as a Tractor Trailer Operator by agreeing to the following stipulations:

1. Agree to serve a **Twenty-seven (27) Day Suspension** effective **November 8, 1997** to run through **December 4, 1997,** based on the above action.

2. Agree to an evaluation by the **Employee and Assistance Program** (EAP) at the first available appointment.

3. Agree to follow the treatment and rehabilitation recommendations of the EAP and understands that you must successfully complete the treatment and rehabilitation regimen.

Back to Training Handouts

4. You must pass an **EAP** participation evaluation by the **EAP** counselor, who will provide his or her recommendations to the MRO for approval.

5. You must pass a return-to-duty evaluation by the MRO.

6. Agree to unannounced follow-up testing to be determined by the MRO for a period not to exceed 60 months.

7. Agree that any positive drug test during the follow-up test period, including random, for cause, or post accident tests, will result in immediate removal.

YOUR SIGNATURE BELOW ACKNOWLEDGES YOUR AGREEMENT WITH THE REQUIREMENTS AND STIPULATIONS LISTED IN THIS AGREEMENT.

12-9-97
DATE

12.9.97
DATE

LAST CHANCE AGREEMENT

In keeping with the Step 3 decision covering Appeal Number
(Local No. 951759), the grievance will be placed under a **Last Chance Agreement** with the following stipulations:

The removal action will be held in abeyance subject to the following conditions:

1. Prior to return to duty the grievant will submit to a drug test to be administered at the Postal Medical Unit, 3900 Crown Road, Atlanta, Georgia.
2. If the test is negative, the grievant will be returned to duty as a Vehicle Maintenance Mechanic at the start of the next pay period.
3. If the test is positive, the removal will be reinstated.
4. The entire period of absence from duty, including the period of time awaiting the results of the test will be treated as a disciplinary suspension without back pay.
5. Upon reinstatement as a result of a negative test result, the grievant will be subject to random and unannounced follow-up drug testing for a period of two (2) years as determined by Postal Management. In the event that the Grievant tests positive during such period, removal action will be immediately invoked without advance notice.
6. The grievant agrees to follow the treatment and rehabilitation recommendations of the EAP and understands that he must successfully complete the treatment and rehabilitation regimen.
7. It is understood between the parties that this Settlement Agreement is non-precedential and may not be cited for any reason, including comparison in any other proceeding or forum.
8. It is agreed that the grievant will sign a medical release form for EAP verification purposes.
9. This settlement will resolve any and all related grievances on this matter.

I, freely sign the agreement without reservation, duress or coercion on the part of anyone. I agree to abide by the terms of this Agreement.

Grievant Date May 27, 1998

Union R Date May 27, 1998

Manage Date May 27, 1998

FAX:

TRANSPORTATION & NETWORKS
UNITED STATES
POSTAL SERVICE

July 29, 1999

SUBJECT: LAST CHANCE AGREEMENT IN LIEU OF NOTICE OF REMOVAL

Pursuant to the United States Postal Service's compliance with the Federal Highway Administration (FHWA) Controlled Substance Use and Alcohol Misuse Prevention Program, on May 26, 1999, you were selected to take the U. S. Department of Transportation (DOT) random urinalysis drug scre[illegible]. On June 18, 1999, the Medical Review Office notified my office that the split specimen [illegible] also positive. Your positive results from this screen disqualify you from operating any postal vehicles. You have failed to meet the DOT qualifications, Postal requirements and postal regulation set forth in the Employee and Labor Relations Manual, Section 661.55 which states "Illegal Drug Use – **Illegal use of drugs may be grounds for removal from the Postal Service."** You further violated Section 814.2 of the ELM, which reads, **"Responsibilities – It is the responsibility of all employees to: (a) Comply with all safety and health regulations, procedures and practices.....(c) Keep physically and mentally fit to meet the requirements of the job."**

You are hereby notified that you will be given a **"Last Chance Agreement"** to meet the DOT qualifications and the Rules and Regulations of the U. S. Postal Service as a Tractor Trailer Operator by agreeing to the following stipulations:

1. Agree to serve a **Thirty (30) Day Suspension** with 14 days of said suspension to count as time served. The remaining 16 days to be effective **July 31, 1999** and run through **August 15, 1999.**

2. Agree to an evaluation by the **Employee and Assistance Program (EAP)** at the first available appointment.

3. Agree to follow the treatment and rehabilitation recommendations of the **EAP** and understands that you must successfully complete the treatment and rehabilitation regimen.

4. You must pass an **EAP** participation evaluation by the EAP counselor, who will provide his or her recommendations to the MRO for approval.

5. You must pass a return-to-duty evaluation by the MRO.

6. Agree to unannounced follow-up testing to be determined by the MRO for a period not to exceed 60 months.

Back to Training Handouts

LAST CHANCE AGREEMENT

7. Agree that any positive drug test during the follow-up test period, including random, for cause, or post accident tests, will result in immediate removal.

YOUR SIGNATURE BELOW ACKNOWLEDGES YOUR AGREEMENT WITH THE REQUIREMENTS AND STIPULATIONS LISTED IN THIS AGREEMENT.

12/29/99
TE

12-29-99
DATE

TRACTOR TRAILER OPERATOR

CC: Plant Manger
Manager, Inplant Support
Labor Relations
Steward

Back to Training Handouts

UNITED STATES
POSTAL SERVICE

June 5, 2000

MEMORANDUM FOR:

SUBJECT: LAST CHANCE AGREEMENT

It is agreed that the Notice of Removal dated December 13, 1999, will be held in abeyance. The grievant will be placed under a Last Chance Agreement subject to the following conditions:

1. Prior to return to duty, the Grievant will submit to a drug test to be administered at the Postal Medical Unit, 3900 Crown Road, Atlanta, GA.

2. If the test is negative, the Grievant will be returned to duty as a Tractor Trailer Operator at the start of the next pay period.

3. If the test is positive, the removal will be reinstated.

4. The entire period of absence from duty, including the period of time awaiting the results of the test will be treated as a disciplinary suspension without back pay.

5. Upon reinstatement as a result of a negative test result, the Grievant will be subject to random and unannounced follow-up drug testing for a period of five (5) years as determined by Postal Management. In the event that the Grievant tests positive or provides an adulterated specimen during such period, removal action will be immediately invoked without advance notice.

6. The Grievant agrees to follow the treatment and rehabilitation recommendations of the EAP and understands that he must successfully complete the treatment and rehabilitation regimen.

7. If the removal action is reinstated the Grievant agrees to waive appeal rights to Arbitration, the Merit Systems Protection Board (MSPB) and any other administrative and judicial forum.

Back to Training Handouts

8. It is understood between the parties that this Settlement Agreement is nonprecedential and may not be cited for any reason, including comparison in any other proceeding or forum.

9. It is agreed that the grievant will sign a medical release form for EAP verification purposes.

10. All grievances, complaints, law suits or other actions, including but not limited to Equal Employment Opportunity, involved in this situation shall be withdrawn pursuant to this agreement with prejudice.

11. There will be no back pay provided.

I, freely sign the Agreement without reservation, duress or coercion on the part of anyone. I agree to abide by the terms of this Agreement.

Grievant: Date: 6-5-00

Union 6-5-00

Management Representative 6/5/2000

15. **Regional Arbitration Award on Positive Drug Test: H98V-1H-D 00048303 - William H. Holley, Jr.**

Back to Trainin

In the Matter of Arbitration		
between		
UNITED STATES POSTAL SERVICE	Case No.:	H98V-1H-D 00048303
	Grievance:	Terry Hipps
and		
AMERICAN POSTAL WORKERS UNION		

BEFORE: William H. Holley, Jr.

APPEARANCES:

FOR THE POSTAL SERVICE: Jimmy Fleming

FOR THE UNION: Ulysses Coneway

PLACE OF HEARING: Atlanta, GA

DATE OF HEARING: November 7, 2000

DATE OF AWARD: December 5, 2000

RELEVANT CONTRACT PROVISIONS: Articles 2, 15, 16, and 19

AWARD SUMMARY

Based on the evidence presented and the Agreement, the Grievance is sustained. The Postal Service is directed to remove the Emergency Placement and to pay Mr. Hipps for the time lost until his resignation.

William H. Holley, Jr.
Arbitrator.

Back to Training Handouts

Background

As the result of a Last Chance Agreement dated 10/23/95, Mr. Terry Hipps was given a drug test on December 1, 1999. Matthew Hine, M.D., Senior Area Medical Director, Southeast Area wrote in a letter dated December 3, 1999 the following:

> Both of these employees were under a Last Chance Agreement for prior positive drug testing.
>
> I have reviewed the chain of custody and lab reports regarding the random urine collection of 12/1/99 for Mr. Hipps and Mr. Smith.
>
> My MRO finding is that both employees refused to test.

On the same day, Mayme L. Fisher wrote to Mr. Dennis Putt, Supervisor, Transportation Operations. The letter stated:

> The DOT stated in its September 28, 1998 memorandum that the right to a split specimen test is "withdrawn" in the case of an adulterated specimen.
>
> Therefore, the donor should not be offered the opportunity to have the split specimen tested.
>
> (American Medical Lab has frozen the specimen, and they will be stored for 13 months.)

In a letter dated December 3, 1999, Mr. Dennis Putt, Supervisor, Transportation Operations, wrote the following letter to Mr. Terry Hipps:

> In accordance with Article 16, Section 7, Emergency Procedure, of the Collective Bargaining Agreement, you are hereby notified that you will be placed in off-duty status without pay effective immediately and will continue in this status until you are advised otherwise.
>
> The reason for this action is as follows:
>
> On December 1, 1999, you were tested for use of drugs under guidelines set forth by the Omnibus Transportation Employee Testing Act of 1991

Back to Training Handouts

and Last Chance Agreement issued on October 23, 1995. The results of the test are positive.

An employee may be immediately placed in off-duty status (without pay) by the employer, but remain on the rolls where there is an allegation involving intoxication or the use of drugs and/or alcohol, pilferage, or failure to observe safety rules and regulations.

Retaining you on duty may result in damage to U.S. Postal Service property, loss of mail or funds, or injury to yourself or others.

You have the right to file a grievance under the Grievance-Arbitration Procedure set forth in Article 15, Section 2 of the National-Agreement within fourteen (14) days of your receipt of this letter.

A Grievance was filed on December 9, 1999. The Grievance Summary-Step 1 states:

Issue:

Alleged violation of article(s) 2, 15, 16, 19

Remedy Requested:

Recind (sic.) emergency placement. Grievant be made whole.

Background:

On 12/01/99, grievant Terry Hipps was sent to the MPO Health Unit for a random drug test.

On 12/03/99, Supervisor D. Putt was informed that the results of the test was positive.

Supv Putt immediately placed grievant Hipps in an emergency off duty status pending a meeting of Hipps and the MRO.

On 12/03/99 during the discussion between Supv. Putt and grievant Hipps in regards to this being the second positive test of Hipps and with Hipps already on a last chance agreement for prior positive testing, Hipps stated: "I may as well go ahead and resign".

On 12/15/99, grievant Hipps resigned from the Postal Service.

Back to Training Handouts

Management's Position:

> Grievant Hipps tested positive during a random test procedure. Hipps was already on a last chance agreement for prior positive drug test.
>
> The placement in an emergency status is proper and for just cause.

Union's Position:

> Emergency placement should be rescinded and grievant made whole.

The Union's Step 2 Appeal Form states:

Detailed Statement of Facts/Contentions of the Grievant:

> APWU and Terry Hipps are aggrieved over the fact that Mr. Hipps has been placed in an emergency off duty status. Grievant is being accused of giving a sample that either had been doctored or having some foreign substance in it. Grievant maintains that he has no knowledge of any of the matters asserted by Management.

Corrective Action Requested:

> APWU requests that the suspension be rescinded and that the grievant be made whole for all losses. APWU requests a copy of the Form 2608 be provided at Step 2.

Then, on December 14, 1999, Mr. Hipps submitted his Resignation from the Postal Service. The Reason for Resignation was "Personing (sic.) Slef (sic.) Emploment (sic.)."

Management's Step 2 Decision was provided by *Mr. James M. Lester. He* wrote on January 29, 2000:

> Relevant Facts: Grievant was sent for a random drug test and the results of the test were rendered as refusing to test by MRO Hines due to a foreign substance being entered into the specimen. Split test is withdrawn in the case of adulterated specimen.

Back to Training Handouts

> Union's Position: Union requests emergency placement notice be rescinded and grievant should be allowed to split test.
>
> Detailed Reason for Denial: Grievant was sent for a random drug test on 12/1/99 and on 12/3/99 MRO Hines ruled that the employee refused to test due to an adulterated specimen. MRO Hines also stated that the Grievant should not be offered the split specimen test due to a DOT memorandum dated 9/28/98 which advises that a split specimen test is withdrawn in the case of a adulterated specimen. Additionally, article 16.7 states that an employee may be immediately placed in an off-duty status by the employer where the allegation involves intoxication, either use of drugs or alcohol. In this case the employee is also on a Last Chance Agreement for a prior positive drug test and on 12/15/99 the employee resigned from the Postal Service.

On March 10, 2000, Mr. Ulysses Coneway, MVS Director, provided the following "Additions and Corrections":

> The Grievant believes that he was coerced into executing resignation due to Supervisor Dennis Putt's actions, implying that the Grievant was "finished". The Grievant was charged via an emergency placement in off duty status, with testing positive for drugs. Since that time, Management changed it's (sic.) position and in it's (sic.) Step 2 decision it is alleging that the grievant's specimen was. As a result of the adulteration, it equates to a refulal (sic.) to test. Since Management charges that the Grievant tested positive, then thd (sic.) offer to have split sample must be afforded. This is the guideline set out in the P.O. 720-95-2 Appendix E. This split test would have revealed exactly what if any adulterant was in the urine. Management has breached its' (sic.) obligation to afford the Grievant "due process". There is no mention of the Grievant admission of having used illegal substance internally or externally. Management has not met it's (sic.) burden of proving that the Grievant tested positive for drugs. Instead Management has forced the Grievant to prove that he didn't use drugs. The Grievant rather than prove a negative was led to believe that the best thing for him was to resign his position at the Postal Service.

The Grievance was appealed through the next steps of the Grievance Procedure and to arbitration wherein a hearing was held on November 7, 2000. Both parties were provided full opportunity to present evidence and to examine witnesses who testified under oath. Both parties

Back to Training Handouts

presented oral closing arguments at the end of the hearing. Upon presentation of the closing arguments, the record was closed.

Issues

The Union proposed two issues:

> Did the Postal Service violate the National Agreement when it charged the Grievant for testing positive for drugs on December 1, 1999? If so, what is the remedy?
>
> Was the emergency placement dated 12/3/00 for just cause? If not, what should be the remedy?

The Agency proposed:

> Did the Agency violate the Collective Bargaining Agreement when it issued an emergency placement in an off-duty status on 12/3/99? If so, what is the remedy?

The Arbitrator was authorized to frame the issues after receiving the evidence.

Therefore, the issue is:

> Whether the Agency violated the Agreement when it invoked the emergency placement procedure on December 3, 1999 it determined that Mr. Hipps had tested positive for drugs?

Relevant Provisions
of the Agreement

Article 2

Article 3

Article 15

Article 16

Article 19

Back to Training Handouts

Positions of the Parties

The Agency:

The Agency stated that Mr. Hipps took a drug test under the requirements of his Last Chance Agreement. Dr. Hine reported an adulterated specimen and that Mr. Hipps "should not be offered the opportunity to have the split specimen tested." Further, Mayme Fisher stated that Mr. Hipps was "not qualified for continuation of his regular driving duties" and his test results will be "handled as refusal to provide specimen for testing." Then, Mr. Hipps was issued an Emergency Placement in Off-Duty Status dated December 3, 1999.

Mr. Hipps claimed that he was confronted by three Supervisors and the meeting was intimidating. Instead, Mr. Putt claimed that he had only a one-on-one meeting with Mr. Hipps. Mr. Hipps said he felt intimidated and believed that he needed to resign. Mr. Hipps testified that he felt no alternative.

The Agency claimed that Mr. Hipps took no action to correct what Mr. Hipps believed was an improper action. He did not go to the Union Hall, he did not contact his Union Steward, he did not go to see his own physician who could have tested him. Mr. Hipps testified that he did not attempt to withdraw his letter of resignation. Unlike Mr. Jimmy Smith who was tested at the same time as Mr. Hipps and whose tests results showed an adulterated specimen, Mr. Hipps did not pursue a correction. Mr. Smith went to his own physician and was placed back on the job. Mr. Hipp's action was to resign on December 14, 1999.

The Agency stated that Mr. Hipps was asked whether the letter had any effect on his actions. Mr. Hipps specifically answered that he did not resign because of the letter.

Back to Training Handouts

The Agency responded to the Union's claim that Mr. Hipps was treated differently from Mr. Smith. Mr. Smith did not resign; Mr. Hipps did. Mr. Smith took steps to correct the adulterated specimen; Mr. Hipps took no action.

The Agency argued that Mr. Hipps resigned voluntarily. For the Union to prevail, Mr. Hipps would have to prove that he resigned involuntarily, that there was no other choice, and that Management's conduct or the working conditions were intolerable. The truth is that Mr. Hipps resigned voluntarily to pursue self-employment. There were 11 days between the date of the emergency placement including the meeting with Mr. Putt and the date of his resignation. Mr. Hipps had 11 days to withdraw his resignation and to correct the test results through the Union or through his physician. Instead, Mr. Hipps resigned and did nothing to withdraw his resignation or to correct the results of the test.

The Agency concluded that there was no proof that Management violated the Agreement or that there was a coerced resignation. Therefore, the Grievance must be denied.

The Union:

The Union argued that the Agency failed to address the positive test which led to an improper emergency placement. In fact, Management's Step 2 Decision changed the reason for the emergency placement from a "positive test" to an "adulterated specimen."

The Union claimed that the Agency must prove that there was just cause to support the emergency placement and the Agency was unable to do so. There was no evidence that there was a positive test and Mr. Hipps had the right to a split specimen test which was not performed.

Back to Training Handouts

The Union argued that Mr. Hipps was denied due process. He had the right to know the charges against him. He was charged for testing positive, but the Agency did not identify the specific drug. Thus, it was impossible for Mr. Hipps to counter the charges.

The Union stated that Mr. Hipps knew that he had not taken any drugs and he believed there should have been a split specimen test. He believed that he was powerless after he was confronted by three supervisors who had overlapping tours, he felt intimidated, and he felt that he had no choice but to resign.

The Union concluded that the evidence proved that Mr. Hipps was forced to resign and that he never tested positive. Therefore, the Emergency Placement and his resignation should be removed. The Union requested that Mr. Hipps be returned to employment, his seniority restored, and Mr. Hipps be made whole.

Analysis and Discussion

This matter of arbitration concerns contract interpretation and application, proof, testimony of witnesses, and arbitral principles. The evidence shows that on December 1, 1999, Mr. Hipps was tested in accordance with a Last Chance Agreement. On December 3, 1999, Mr. Hipps was issued an Emergency Placement in Off-Duty Status by Mr. Dennis Putt. He included as the reason for the emergency placement:

> On December 1, 1999, you were tested for use of drugs under guidelines set forth by the Omnibus Transportation Testing Act of 1991 and Last Chance Agreement issued on October 23, 1995. The results of the test are positive.

Dr. Hines wrote on December 3, 1999 at 9:38 a.m.:

> I have reviewed the chain of custody and lab reports regarding the random urine collection of 12/1/99 for Mr. Hipps and Mr. Smith.
>
> My MRO finding is that both employees refused to test.

It is important to note that neither of Dr. Hines' letters indicate a positive test result.

Back to Training Handouts

The Union submitted several documents to support its position. One document dated September 28, 1998 entitled "Notice to HHS Certified and Applicant Laboratories" from the Department of Health & Human Services. Two definitions contained in this document are:

> Positive. The "Positive" and the specific drug/drug metabolite(s) boxes in Step 7 on the CCF are checked when a positive drug test result is obtained on an initial test and a confirmatory test. If the specimen is also dilute, the laboratory includes the following statement on the "Remarks" line: "Dilute Specimen."
>
> Note: A positive drug test is not reported when the specimen has been determined to be adulterated or substituted; however, the laboratory may conduct and complete the confirmatory test.
>
> Test Not Performed. The "Test Not Performed" box is check in Step 7 on the CCF if the specimen is (1) not tested because of a fatal flaw (e.g., broken seal; specimen ID numbers do not match), (2) not tested because of an uncorrected flaw (e.g., a collector's signature was omitted and a signed statement is not received to correct the error), (3) unsuitable for testing or contains an unidentified interferant because a valid drug test result cannot be obtained, (4) adulterated, or (5) substituted.

In a Joint Exhibit No. 3, entitled "Specimen Validity Test" from May Bernstein, Director, Drug and Alcohol Policy and Compliance Office, there is contained the following definition:

> Test Not Performed -- Specimen Adulterated/Substituted. The MRO checks the "Test Not Performed" box in Step 8 on Copy 2 or Copy 4 of the CCF and enters "Adulterated," or "Substituted," and "Refusal to test" on the "Remarks" line. The MRO reports to the employer that the specimen was adulterated or substituted, either of which constitutes a "refusal to test." The MRO also informs the employer that the right to have the split specimen tested by the donor is withdrawn. Therefore, neither a test of the split specimen, nor a retest of the primary specimen is offered to the donor.
>
> Failure to Reconfirm -- Specimen Adulterated/Substituted. The MRO checks the "Failed to Reconfirm" box lines through the accompanying phrase "Both tests canceled," and enters "Adulterated, " or "Substituted,"

Back to Training Handouts

> and "Refusal to test" on the "Remarks" line in Step 8 on Copy 3 of the CCF. The MRO reports to the employer and the donor that the specimen was adulterated or substituted, either of which constitutes a "refusal to test." Therefore, "refusal to test" becomes the final, single result for both tests.

Mr. Putt testified that the adulterated test results are treated the same as testing positive. Mr. Putt was provided time at the hearing to support his interpretation by submitting documentation because none of the documents presented supported his interpretation. He was unable to do so. The documents do show that adulterated results are treated as a failure to test and may be treated the same as positive test results in terms of permission to drive a motor vehicle. However, the adulterated test results are simply not a positive test as indicated by Mr. Putt in his letter dated December 3, 1999.

In addition, the Union argued that Mr. Hipps was entitled a split specimen test. Such split test of an adulterated test result would not be appropriate because the split test would be performed on the same specimen that had already been determined to have been adulterated. There is only one conclusion, that is, the evidence presented does not support Mr. Putt's interpretation. The evidence does not support that conclusion that Mr. Hipps tested positive for drugs. Therefore, the Emergency Placement was improper and should be removed.

Now, it is appropriate to determine the remedy in light of the fact that Mr. Hipps resigned on December 14, 1999. The Union submitted the definition of "Resignation" from ELM 15 - December 1999 "Employment and Placements Other Personal Actions":

> Definition of Resignation (RESIG)
>
> > Resignation is a separation at the employee's request. Employees may resign at their discretion; this includes application for optional retirement. Resignations must be accepted and are

Back to Training Handouts

> binding once submitted. However, employees may be permitted to withdraw their resignation request provided the request to withdraw is made before the effective date of the resignation. Denial of an employee's request must be based on a valid reason and such reason should be explained to the employee before the effective date of the resignation. Administrative disruption or the hiring of a replacement before a request for withdrawal is made are appropriate reasons for such denial. A desire to avoid taking adverse action is not an appropriate reason for denying an employee's request.

On December 14, 1999, Mr. Hipps wrote on his resignation form that he was pursuing self employment. Mr. Hipps stated that he was called to a meeting with three supervisors and he felt intimated by these supervisors. He believed that he had no alternative except to resign. Mr. Putt testified that he had a pre-disciplinary interview with Mr. Hipps and there was no other supervisor present. Mr. Putt made notes on the Pre-Disciplinary Interview Form. He wrote:

> On 12/1/99, Hipps was sent for a drug screening per his Last Chance Agreement for prior positive drug testing. The Last Chance was issued on 10/23/95.
>
> Employee Hipps stated he doesn't know how a "foreign substance" would have gotten in his test urine. He offered he may just resign from the Postal Service.

Thus, Mr. Hipps mentioned that he was considering resignation on December 6, 1999. Eight days later, he did resign. In other words, Mr. Hipps had eight days to consider his action.

Mr. Hipps was asked what actions did he take to resolve the adulterated test results and the Emergency Placement.

Q(Mr. Fleming): Did you talk to the nurse?

A: (Mr. Hipps): No

Q: Did you talk to the Union?

Back to Training Handouts

A: No. I tried to talk to Mr. Coneway, but he was busy.

Q: Did you go to the Union hall (11 miles away)?

A: No.

Q: Did you talk to your Union Steward (Mr. Amy)?

A: No.

The most important question asked at the hearing was directly to Mr. Hipps. This question was whether the letter caused him to resign. He responded: "No."

Since the hearing was tape-recorded, it is important to review the exact words of Mr. Hipps:

Q (Mr. Fleming): You did not resign because the letter stated that you tested positive.

A (Mr. Hipps): No. I did not resign because the letter said positive. I resigned because I felt I was being threatened.

Mr. Hipps claimed that he resigned because he felt intimidated by the meeting with three supervisors. Mr. Hipps testified that Mr. Putt did not tell him whether or not to resign. Mr. Putt said he told Mr. Hipps of the consequences of a positive drug test and how such test would affect his future employment. Most of the discussion involved hypothetical situations on the effects of a positive test result. The problem here is that there was no support to Mr. Hipps' allegation that three supervisors intimidated him. This intimidation claim basically is inconsistent with Mr. Putt's testimony and there is no evidence of intimidation by three supervisors in the record file.

Mr. Hipps testified that he went on his own to obtain a copy of the resignation form. He completed it and did not return to withdraw it after he submitted. In fact, there is no mention of

Back to Training Handouts

any coerced resignation until the Union submitted its "Additions and Corrections" on March 10, 2000.

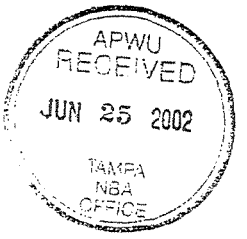
Based on the evidence presented, it must be concluded that Mr. Hipps resigned voluntarily and his resignation limits the number of days in the remedy.

Back to Training Handouts

16. Regional Arbitration Award on Positive Drug Test: H98V-4H-D 01136778 - Irving N. Tranen

Back to Trainin

ATLANTA REGULAR PANEL



In the matter of the Arbitration	)	GRIEVANT: Dobbs, Marlon
between	)	POST OFFICE: Atlanta, Georgia, P&DC
UNITED STATES POSTAL SERVICE	)	
and	)	USPS CASE NOS.: H98V-4H-D 01136778 H98V-4H-D 01164255
AMERICAN POSTAL WORKERS UNION, AFL-CIO	)	UNION CASE NOS.: 2001-0594 2001-0829

BEFORE: Irving N. Tranen, Arbitrator

APPEARANCES

For the U.S. Postal Service: Cynthia Johnson, Labor Relations Specialist, presenting

For the Union: Ulysses Coneway, National Business Agent, presenting

Place of Hearing: Atlanta, Georgia P&D Center
Vehicle Maintenance Facility

Dates of Hearing: December 13, 2001 and May 7, 2002

Date of Award: June 21, 2002

Relevant Contract Provisions: Articles 15, 16, 19

Contract Year: 1998 - 2000

Type of Grievance: Emergency Placement; Removal

Award Summary:

The grievant herein was deprived of a Last Chance Agreement, after a policy had been in place granting Last Chance Agreements to drug offenders. Therefore, just cause did not exist for termination. The grievant is reinstated with back pay and full benefits less sums earned during the period of termination. The grievant is to be given a Last Chance Agreement.

Irving N. Tranen, Arbitrator

Date June 21, 2002

Back to Training Handouts

ISSUES

Was the emergency placement of the grievant in an off-duty status, on March 9, 2001 procedurally defective and/or violative of the provisions of the National Agreement? If so, what shall the remedy be?

Did the U.S. Postal Service have just cause to issue to the grievant, Marlon Dobbs, a Notice of Proposed Removal? If not, what shall the remedy be?

BACKGROUND

The grievant, a motor vehicle operator, was on March 2, 2001, selected for a random drug test, pursuant to the provisions of the U.S. Department of Transportation (DOT) provisions. The Medical Unit notified Dennis Putt, Supervisor, Transportation Operations, that the specimen provided contained an illegal controlled substance. The grievant subsequently met with the Area Medical Review Officer, requested a specimen screening and was allowed to present on March 9, 2001, information to explain the positive drug test results. This official found such information non-persuasive.

By memorandum dated March 9, 2001, the grievant was, pursuant to provisions of Article 16, Section 7, Emergency Procedure, notified that he was being placed in an off-duty status without pay, effective immediately and would continue in that status until otherwise advised. The reason given for this action was "On March 2, 2001, under the Department of Transportation Random Drug Test Act, you were tested for drug use. The results of that test was positive." (Joint Exhibit 2, page1)

A grievance was filed on March 22, 2001, protesting the Emergency placement. This was denied by William L. Camp at Step 1. A Step 2 appeal was taken on that same day and by decision dated May 2, 2001, denied. The reason cited for the denial by the Postal Service was that, "There is zero tolerance for drug/alcohol use in the Postal Service. In the past, Last Chance Agreements were issued in an effort for the testing program to be implemented and employees given the chance to 'free themselves from drug/alcohol use' should they have been using these substances.

Back to Training Handouts

The program was implemented in 1994 and we continue to have positive drug tests. As a result, all employees were put on notice that Last Chance Agreements may not be issued.
Zero tolerance is meant to be no tolerance for any drug/alcohol use by Postal Employees and therefore positive drug tests resulting in an emergency placement followed-up with a removal action." (Joint Exhibit 2, page 4)

Prior to the issuance of this Step II decision, the Union had filed Additions/Corrections on March 30, 2001 protesting the failure to hear the grievance at Step II within the contractual time limits and further noting that:

> "THE STEP 2 DECISION FAILED TO ADDRESS A VERY IMPORTANT FACTOR. THAT BEING ARTICLE 16.8 (REVIEW OF DISCIPLINE). MANAGEMENT'S POSITION IS THAT IT DOES NOT HAVE TO HAVE AN EMERGENCY PLACEMENT LETTER REVIEWED AND CONCURRED BY THE INSTALLATION HEAD OR DESIGNEE. THE UNION DISAGREES WITH THE POSITION TAKEN BY MANAGEMENT. AN EMERGENCY PLACEMENT IS A FORM OF SUSPENSION AND DISCHARGE, AND THEREFORE IS SUBJECT TO ARTICLE 16.8.
> MANAGEMENT HAD NOTHING AT STEP 2 TO SUBSTANTIATE THAT MR. DOBBS TESTED POSITIVE. IT COULD NOT EVEN TEL THE UNION OFFICIAL WHAT SUBSTANCE FOR WHICH MR. DOBBS ALLEGEDLY TESTED POSITIVE. THE GRIEVANT HAS A RIGHT TO KNOW THIS. MR. DOBBS SHOULD HAVE BEEN GIVEN THE OPPORTUNITY TO HAVE A SPLIT SAMPLE TEST PERFORMED. ASSUMING FOR THE SAKE OF ARGUMENT, IF MANAGEMENT HAD ESTABLISHED THAT MR. DOBBS DID TEST POSITIVE, IT WOULD HAVE BEEN A FIRST OFFENSE. GIVEN THE HISTORY OF THE U.S. POSTAL SERVICE AS IT RELATES TO DISCIPLINARY ACTION TAKEN AGAINST EMPLOYEES WHO TEST POSITIVE THE FIRST TIME FROM ABOUT 1995 UNTIL 2000. ALL EMPLOYEES HAVE BEEN ALLOWED OFFERED A LAST CHANCE WHICH IF ACCEPTED WAS REDUCED TO WRITING AND SIGNED BY THE EMPLOYEE. AT A MINIMUM, MR. DOBBS SHOULD HAVE THE SAME OFFER MADE TO HIM.
> THE EMERGENCY PLACEMENT LETTER IS DATED MARCH 9, 2001. THERE IS NOTHING IN THE NOTICE

Back to Training Handouts

> THAT SUPPORTS MANAGEMENT'S CONTENTION THAT IF THE POSTAL SERVICE RETAINED MR. DOBBS ON DUTY THAT IT WOULD RESULT IN DAMAGE TO U.S. POSTAL SERVICE PROPERTY, LOSS OR MAIL OR FUND, OR INJURY TO HIMSELF OR OTHERS. NOTHING WHATSOEVER WAS PRESENTED AT STEP 2 TO SUPPORT THIS CLAIM. ALSO INTERESTING IS THE FACT THAT NOTHING WAS PRESENTED AT STEP 1 OR STEP 2 TO PROVE THAT ON MARCH 9, 2001, MR. DOBBS WAS UNDER THE INFLUENCE OF DRUGS. NO EVIDENCE OF SMELL, OF IMPAIRMENT, APPEARANCE, SPEECH, ETC. MANAGEMENT HAS FILED TO ESTABLISH THAT IT HAD REASON TO PLACE MR. DOBBS OFF THE CLOCK." (Joint Exhibit 2, page 3)

This matter was then appealed to arbitration.

The grievant was issued a Notice of Proposed Removal, dated April 23, 2001, charging him with "failure to meet the safety requirements of your position as Motor Vehicle Operator, and that you tested positive for use of drugs under guidelines set forth by the Omnibus Transportation Act of 1991." In charge 2, the grievant was charged with "improper conduct"

The grievant was, in this letter, notified of his right to file, after the expiration of 10 days, any reply that he chose to, to Mr. James Lester, Manager, Transportation and Networks. (Joint Exhibit 3, pages 1 - 3)

A grievance was filed on May 2, 2001, alleging that the action taken by the U.S. Postal Service, in its Notice of Proposed Removal, was punitive and not corrective in nature. This grievance was denied at Step 1. The Postal Service, on Form 2608 indicated that the background reasons for denial at Step 1 was that, "on 03/02/01, grievant Dobbs, was scheduled for a random drug test per D.O.T. regulations as a result of his safety sensitive driving duties. The results of the specimen provided by Dobbs resulted in a positive drug test. This means that prior to duty, or while on duty, Dobbs used an illegal drug substance. Since 1994 the Postal Service offered last chance agreements to drivers who tested positive for drug due to the program being new and an

Back to Training Handouts

opportunity for drivers to clean themselves if they were using drugs. But since that time, the Postal Service has adopted a zero tolerance for drug use. As a result, grievant Dobbs has been issued a removal from the Postal Service." (Joint Exhibit 3, page 9)

A Step 2 appeal was taken that same date alleging that:

> "MR. DOBBS INFORMED MANAGEMENT AND DR. SAVORY THAT HE WAS USING HEALTH FOOD PRODUCTS ON A DAILY BASIS. OTHER THAN THAT, HE NEVER USED ANY DRUG-LIKE OR DRUG RELATED PRODUCT. WHAT IS SUSPECTED IS THAT ONE OR MORE OF THE HEALTH PRODUCTS ACTED AS AN ILLEGAL/POSITIVE DRUG AT THE TIME THE SCREENING WAS DONE. MR. DOBBS BELIEVES THAT A MORE SCIENTIFIC TEST SHOULD BARE GRIEVANT OUT AND HIS GOOD NAME WOULD BE CLEARED. THE SPLIT TESTING IS NECESSARY TO CONFIRM THE FIRST TEST, IF IT IS POSITIVE. MANAGEMENT HAD AN OBLIGATION TO CONFIRM THE SCREENING AND INFORM MR. DOBBS OF IT'S RESULT. IT HAS NOT DONE SO. MR. DOBBS IS A VETERAN. VETERANS ARE GIVEN PROPOSED REMOVALS. THEY ARE GIVEN A 10 DAY TIM FRAME TO MEET WITH AN IMPARTIAL THIRD PARTY TO PRESENT THEIR SIDE OF THE STORY ALONG WITH OTHER COMPELLING FACTORS. IN THIS CASE, DOBBS WAS GIVEN AN OPPORTUNITY TO MEET WITH JAMES LESTER. JAMES LESTER WAS SUPPOSED TO ISSUE GRIEVANT A DECISION LETTER REGARDLESS OF WHETHER GRIEVANT MET WITH LESTER OR NOT. AFTER THE EXPIRATION OF 10 DAYS. AS OF JUNE 19, 2001, J. LESTER HAS NOT ISSUED A DECISION LETTER. SINCE GRIEVANT IS A VETERAN, HE MUST BE GIVEN MSPB RIGHTS. THOSE RIGHTS ARE USUALLY GIVEN IN THE DECISION LETTER. BUT SINCE NO DECISION LETTER HAS BEEN GIVEN, GRIEVANT HAS BEEN DEPRIVED OF HIS MSPB RIGHT. ALSO, UNTIL SUCH TIME, A DECISION LETTER IS ISSUED, GRIEVANT SHOULD BE RECEIVING ADMINISTRATIVE LEAVE. UNTIL MR. DOBBS I ISSUED A LETTER OF DECISION, HE IS ON A CONSTRUCTIVE REMOVAL DUE TO BE COMPENSATED." (Joint Exhibit 3, page 5)

Back to Training Handouts

The Postal Service, issued its Step 2 grievance decision on June 11, 2001, holding that, "'Zero tolerance' is exactly as implied, no tolerance for a positive illegal substance test. Positive results cannot be substantiated through medical determination will result in removal." This was signed by Dennis Putt as Management Representative. (Joint Exhibit 3, page 6)

Both grievances were appealed to arbitration and hearings were held on December 13, 2001 and May 7, 2002, the grievances being joined. All witnesses testified under oath and the parties were given opportunity to examine and cross-examine witnesses. Evidence was admitted and the parties requested an opportunity to file briefs. The request was honored and briefs were due to be filed on June 3, 2002. All briefs were timely filed and the record was closed as of June 6, 2002.

The Union raises as a threshold matter the argument that the Emergency Placement Notice did not bear the signature of a concurring official, in violation of Article 16.8 of the National Agreement. It argues that Emergency Placement is a form of disciplinary action and that Management had not, at any time, refuted that argument. Under those circumstances, the Union argues that what occurred was an intentional violation of Article 16, Section 8. It further points out that to compound this violation of the grievant's due process rights, that Mr. Putt had signed the Emergency Placement and also served as the Step 2 management designee. As the Step 2 designee, the Union argues that, "He must look at both sides of the coin in an effort to resolve the grievance at the local level." This, the Union argues, the Step 2 designee was not able to do inasmuch as he had been the one to not only issue the Emergency Placement, but to sign it without a concurring officer.

The second threshold argument raised by the Union was the charge that Management further violated the grievant's due process rights, "When it failed to render the grievant, a preference eligible veteran, a Letter of Decision on the Proposed Notice of Removal for over six months." The argument here was that by delaying the issuance of the Letter of Decision the preference eligible employee was forced to seek redress in only one forum because the second forum was kept from him by Management's refusal or delay in rendering a Letter of Decision

Back to Training Handouts

RELEVANT CONTRACT PROVISIONS

ARTICLE 16
DISCIPLINE PROCEDURE

Section 1. Principles

In the administration of this Article, a basic principle shall be that discipline should be corrective in nature, rather than punitive. No employee may be disciplined or discharged except for just cause such as, but not limited to, insubordination, pilferage, intoxication (drugs or alcohol), incompetence, failures to perform work as requested, violation of the terms of this Agreement, or failure to observe safety rules and regulations. Any such discipline or discharge shall be subject to the grievance-arbitration procedure provided for in this Agreement, which could result in reinstatement and restitution, including back pay.

Section 7. Emergency Procedure

An employee may be immediately placed on an off duty status (without pay) by the Employer, but remain on the rolls where the allegation involves intoxication (use of drugs or alcohol), pilferage, or failure to observe safety rules and regulations, or cases where retaining the employee on duty may result in damage to U.S. Postal Service property, loss of mail or funds, or where the employee may be injurious to self or others. The employee shall remain on the rolls (non-pay status) until disposition of the case has been had. If it is proposed to suspend such an employee for more than thirty (30) days or discharge the employee, the emergency action taken under this Section may be made the subject of a separate grievance." (Emphasis added)

Section 8. Review of Discipline

In no case may a supervisor impose suspension or discharge upon an employee unless the proposed disciplinary action by the supervisor has first been reviewed and concurred in by the installation head or designee.

In associate post offices of twenty (20) or less employees, or where there is no higher level supervisor than the supervisor who proposes to initiate suspension or discharge, the proposed disciplinary action shall first be reviewed and concurred in by a higher authority outside such installation or post office before any proposed disciplinary action is taken.

ARTICLE 15
GRIEVANCE-ARBITRATION PROCEDURE

ARTICLE 19
HANDBOOKS AND MANUAL

Back to Training Handouts

CONTENTIONS OF THE PARTIES

The Union

The Union, raising its threshold argument on the Emergency Placement Notice, argues that this is a form of a disciplinary action and therefore bound by the provision of Article 16. This section requires the concurrence of the proposed disciplinary action by the installation head or his designee. In the instant case, the Emergency Placement Notice was signed only by Mr. Putt.

Management was further abusing proper procedure when Mr. Putt, who signed both the Emergency Placement Notice and the Notice of Proposed Removal, served as the Step 2 Management Designee in both cases. The Union argues that the Step 2 designee is supposed to consider both sides of the argument, that is Management's argument and the Union's argument and reach a conclusion after due consideration. It argues that Mr. Putt having been the individual signing off on both the Emergency Placement Notice and the Notice of Discharge could not have rendered an impartial reasoned judgement as the Step 2 designee.

In addition, the Union argues that by withholding the Notice of Decision for six months, after the Notice of Proposed Removal, the Postal Service in effect deprived the grievant of making a choice of proceeding either through the route of arbitration or to the MSPB

As to the merits of the case, the Union argues that a past practice had developed in the Atlanta Motor Vehicle facility, which practice allowed MVS craft employees, who tested positive for controlled substances, to enter into a Last Chance Agreement. This policy originated in 1994/1945 and was found, the Union argues, to be beneficial to both the Postal Service and its employees. This past practice meets all of the requirements for the establishment of a custom practice, says the Union, in that it was clear, consistently applied and in effect for a sufficient period of time (1994 - 2001).

The Service, says the Union, attempted to unilaterally change this practice. It is clear, the Union notes, that prior to changing an established past practice, Management must meet with the Union and allow the Union to have some input. Additionally, sufficient notice must be given to the

Back to Training Handouts

Union and to all employees as to the date that the past practice would be changed. None of the above took place in the instant case, argues the Union.

The Union forcefully argues that the notice placed on the bulletin boards as to the change of the past practice, wrongfully attempted by Management, was dated March 26, 2001. In the instant situation, the grievant was placed on Emergency Placement on March 9, 2001 and was subsequently served with a Notice of Proposed Removal on April 23, 2001. There was no way, argues the Union, that either the employee or the Union had notice on March 9, 2001 that this past practice was going to be changed and that a Zero Tolerance Policy would be in place as of March 26, 2001

In conclusion, the Union argues that the two grievances should be sustained and the grievant reinstated and made whole as to back pay and all benefits

The Postal Service

The Postal Service argues that the procedural errors raised by the Union, were "not harmful procedural errors" and that the grievant did file a timely grievance, and that the grievance was processed pursuant to the provisions of Article 15 of the National Agreement. There was no evidence presented, say Management, to indicate or prove that a concurring supervisor would have selected a different penalty in this case, but for the alleged errors. It points out that Article 16, Section 7 of the National Agreement allows the employer to use the emergency placement procedure where there is an allegation involving a number of possible charges among them, the use of drugs or alcohol. The use of this Emergency Procedure, points out the Postal Service, allows postal employees to remain on the rolls, although in a non-pay status until final disposition is made of this grievance. The Postal Service argues that action taken pursuant to the Emergency Procedure set forth in Article 16.7 does not require the concurrence of a higher ranking management official or designee

In support of this contention, the Postal Service notices that the Service's Management Instruction, Alcohol and Drug Testing of Employees With A Commercial Driver's License on

Back to Training Handouts

page 25 sets forth a sample letter for placing an employee on Emergency Off-Duty Status. This document, the Postal Service notes, does not indicate the necessity of a concurring signature.

The Postal Service in its argument continues by noting there are no claims of a procedural error in the removal case because, as it states, "none were committed". The Postal Service points out that the Union, never, at any time, argued that the grievant had not proven positive as a result of the drug test taken on March 2, 2001. The Postal Service raises the credibility of the grievant inasmuch as he denied the use of any drugs. It sets forth the criteria used by arbitrator Gentile in Case No. W8M-5B-D12447 to judge credibility. They were 1) the interest of the witnesses, including the grievant, in the ultimate outcome of the case; 2) the perception of the witnesses; 3) the clarity and consistency of the testimony; 4) the internal consistency and probability of the testimony; 5) the demeanor and the responses; 6) the reasonableness of the story; and 7) the simple plausibility of the factual narratives weighed against ordinary experience and common sense." It then argues that testimony applied to this case clearly supports Management's action and that the grievant's self-serving testimony falls short

Just cause was established in this case, says the Service, inasmuch as the grievant had notice of the rule, the rule was reasonably related to the performance of the job that the grievant performed; there had been a fair investigation; there was substantial proof of the employee's guilt; the rules, orders and penalties were applied even-handedly and the penalty was proper which related to the offense in the employee's past record.

Management's Instructions as contained in Joint Exhibit 4, notes that proving positive for a drug test may result in a discipline up to and including removal. The Service argues, that last chance agreements are offered only if the supervisor decides not to remove the employee. Some offenses are so grave, it points out that severe discipline or removal is the only reasonable penalty to be imposed, even on a first occurrence.

In conclusion, the Postal Service argue that:

> "It is an inescapable fact that on March 2, 2001, the grievant, a

Back to Training Handouts

> Motor Vehicle Operator occupying a safety sensitive position with the Postal Service provided a urine specimen under controlled conditions, witnessed the sealing of the specimen container as he acknowledged in writing. The documents provided at the hearing established that there was a proper chain-of-custody from collection to testing. Additionally, the initial positive test was confirmed by a second test of the same specimen using the highly accurate gas chromatography/mass spectrometry (GC/MS) procedure. The urine specimen tested positive for marijuana. ... The action taken in the instant case was appropriate, warranted and issued for 'just cause' under the terms of the collective bargaining agreement. No evidence to the contrary has been offered by the Union."

The service requests denial of the grievance as to the Emergency Placement and the Notice of Proposed Removal.

DISCUSSION

The Union argues that the concurrence of a higher official was necessary on the Emergency Placement. It is clear that Section 7 of Article 16, Emergency Procedure is a part of an Article captioned Discipline Procedure and devoted to the administrative procedures to be followed when imposing a discharge. One cannot draw from this any conclusion other than that the imposition of emergency procedure, placing an employee on off-duty status (without pay), constitutes anything other than discipline. And as such, the requirements of Section 8 must be met. That section states that, "In no case may a supervisor impose a suspension or discharge upon an employee unless the proposed disciplinary action by the supervisor has first been reviewed and concurred in by the installation head or designee." This Article was violated by Mr. Putt. The defense of no "harmful procedural defects" must fail.

As to the merits of this matter, one must first look to the argument advanced by the Union of a past practice of giving Last Chance Agreement to first offenders who have failed the drug test administered by the Service. As Dennis Putt, Supervisor, Transportation & Networks testified, he had allowed Last Chance Agreements to those employees who had failed their drug tests, starting in the years 1994/1995. He testified, however, that it became apparent to him in 2001 that the Last Chance Agreements were not having their intended effect. Those individuals who were

Back to Training Handouts

given the Last Chance Agreement in lieu of discharge, when tested again, he testified, often, or always failed the drug test. A result of this, it was determined that the policy was to be changed and that there would be a Zero Tolerance Policy in place at the Atlanta Motor Vehicle Facility. He further testified that he had placed on the bulletin board, a memorandum indicating that the policy was being changed, that Last Chance Agreements would not be automatically given and that the facility was going to follow a Zero Tolerance Policy.

On cross-examination he admitted that he had had no formal discussion as to the changing of this policy with the Union. He stated that he had had no meeting with President Brown of the APWU, but that he had sent him a 30-day letter in advance of the change of policy. He also testified that he gave the craft director a copy at that time by placing the memo in his mailbox. The Union, he testified, had filed a grievance when the notice had been placed on the bulletin board.

Mr. Putt testified that Mr. Dobbs was aware that the guidelines had changed when he came to work. As to the Letter of Decision, he was not aware as to when the Letter of Decision was issued and that he would never knowingly attempt to deny a grievant his MSPB rights. Dobbs was given, he testified, 30 days after receipt of his letter to appeal to the MSPB. The fact that this grievance had already been scheduled for arbitration, at the time the Notice of Decision issued, was not a planned occurrence

Mr. Ralph Brown, president of the Union had testified that he normally interacts with Management, but that in this instance, in neither April nor March of 2001, had he received a letter from Mr. Dennis Putt as to changing the Last Chance Policy for drug offenders. He never met with Mr. Putt or Mr. Lester, not even casually, in any discussion as to ending the past practice.

The Notice, allegedly placed on the bulletin board indicating a change in the past practice of granting a Last Chance Agreement for drug offenders was produced, and was found dated March 26, 2001. It stated that "effective immediately, all MVS employees are put on notice that Last Chance Agreements after a positive drug/alcohol test will not be automatic. The Postal Service

Back to Training Handouts

will address each positive test on the premises that there is Zero Tolerance for a positive drug/alcohol test." (Arbitrator's Exhibit 1)

The testimony of Mr. Putt helped establish that there existed a custom and practice from the years 1994 to March 2001, at the Atlanta MVS, of giving first time drug offenders a Last Chance Agreement. It is obvious, in looking at the dates of the Emergency Placement and the Notice of Proposed Removal in these cases, that they took place prior to the posting of the bulletin indicating a Zero Tolerance Policy.

This arbitrator will not speak to the question of whether management improperly changed a custom and practice. That has been grieved and will be decided by another arbitrator. However, this arbitrator finds that there was in place on March 9, 2001 a custom and practice at the Atlanta, Georgia MVS giving an employee a Last Chance Agreement after failing, for the first time, a drug test. This last chance was not granted to the grievant herein. The grievant cannot be terminated as a result of a policy change that had not been made known to him. Here, the change of policy was dated some 17 days after the grievant received his Notice of Emergency Placement in off-duty status. The Notice of Proposed Removal, dated April 23, 2001 must be found faulty for the reasons set forth above. There has to be a consistency in application of discipline. In this matter, the prime witness for management, in his testimony, clearly established the existence of the policy from 1994 to March 2001. As indicated above, this opinion will not deal with the change of policy and whether it was done in a manner violative of the National Agreement.

The Union further argues that the grievant was deprived of a due process right when after signing the Emergency Placement and the Notice of Proposed Removal, Mr. Pugh served as the Step 2 designee in both instances. I need not indicate whether or not this act was sufficient to have sustained the grievance in and of itself. However, having the signer of the Emergency Placement and the Notice of Proposed Removal serve as a Step 2 designee defeats the purpose of Article 15, Section 1, Step 2. The parties are required to make full disclosure of all facts and approaches to be taken in arbitration, if it proceeds to that point, steps designed to implement a good faith effort to solve the grievance. However, this good faith effort must suffer when the Step 2 designee is the individual who has signed the Notice of Proposed Removal and the Emergency Placement. It

Back to Training Handouts

would be asking much of Management to acknowledge that not only was it wrong, but that the individual representing Management at Step 2 admitted that he was the one who had made the incorrect call.

All submitted cites were read and considered. In light of the above discussion it is found that the grievant was wrongfully deprived of a Last Chance Agreement. He was also placed in Emergency Placement wrongfully.

AWARD

The grievance is sustained. The grievant is reinstated with back pay and all benefits. However, any sums earned by the grievant from the date of his Emergency Placement, March 9, 2001, to the date of his reinstatement shall be deducted from back pay. Further the grievant is hereby given a "Last Chance Agreement" to meet the D.O.T. qualifications and the Rules and Regulations of the U.S. Postal Service and returned to his position as a Tractor Trailer Operator by agreeing to the following requirements:

1) Agree to an evaluation by the Employee Assistance Program (EAP) at the first available appointment.
2) Agree to follow the treatment and rehabilitation recommendation of the EAP and understand that you must successfully complete the treatment and rehabilitation regimen.
3) You must pass an EAP participation evaluation by the EAP counselor who will provide his or her recommendation to the MRO for approval.
4) You must pass a return-to-duty evaluation by the MRO.
5) Agree to unannounced follow-up testing to be determined by the MRO for a period of not to exceed 60 months.
6) Agree that any positive drug test, during the follow-up test period, including random, for cause, or post-accident test will result in immediate removal.

Irving N. Traynen, Arbitrator

Date: June 27, 2002

Back to Training Handouts

17. **Regional Arbitration Award on Positive Drug Test: H98V-1H-D 01124495 - Christopher E. Miles**

Back to Trainin

Regular Arbitration Panel

IN THE MATTER OF THE ARBITRATION	)	
	)	**GRIEVANT:** Tyrone Crawford
BETWEEN	)	
	)	**POST OFFICE:** Atlanta, Georgia P&DC
UNITED STATES POSTAL SERVICE	)	
	)	**CASE NOS.:** H98V-1H-D 01124495
AND	)	and H98V-1H-D 01164244
	)	
AMERICAN POSTAL WORKERS UNION, AFL-CIO	)	**UNION NOS.:** 20010537 & 20010827
	)	

BEFORE: CHRISTOPHER E. MILES, ARBITRATOR

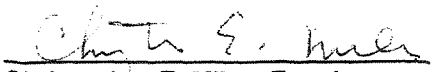
APPEARANCES:

For the U.S. Postal Service:	Cynthia Johnson, Labor Relations Specialist
For the Union:	Ulysses Coneway, Arbitration Advocate
Place of Hearing:	Atlanta, GA
Date of Hearing:	*June 14, 2002*
Date Record Closed:	July 19, 2002
Date of Award:	September 11, 2002
Relevant Contract Provisions:	Article 16
Contract Year:	1998-2000
Type of Grievance:	Discipline

AWARD SUMMARY

The grievance challenging the Emergency Placement issued to Mr. Tyrone Crawford on February 23, 2001 is denied. Mr. Crawford was randomly tested for drugs pursuant to the DOT requirements and the result was positive for cocaine. Thus, it is found that the Grievant was appropriately placed in an off-duty status in accordance with Article 16, Section 7 of the Agreement, which authorizes the immediate placement in an off-duty status where the allegation involves use of drugs.

However, based upon the past practice at the Atlanta facility of offering a Last Chance Agreement to MVS drivers who test positive for drugs for the first time, it is found that the Postal Service did not have just cause to issue the subsequent Notice of Removal to Mr. Crawford without offering him a Last Chance Agreement. Consequently, the grievance protesting the removal action is sustained, in part. The removal is reduced to a thirty (30) day suspension beginning on June 2, 2001. The Grievant shall be returned to his employment with the Postal Service and made whole for any loss of earnings after the thirty (30) day suspension period. He shall be required to enter into a Last Chance Agreement which will permit the Postal Service to conduct unannounced drug tests. In addition, the Last Chance Agreement should provide that if the Grievant tests positive again, he shall be removed from his employment by the Postal Service.



Christopher E. Miles, Esquire
Labor Arbitrator

Back to Training Handouts

I. BACKGROUND

The Grievant, Mr. Tyrone Crawford, is employed by the United States Postal Service (hereinafter referred to as the "Postal Service") as a Tractor Trailer Operator (TTO) in the Motor Vehicle Craft at the Processing and Distribution Center (P&DC) located in Atlanta, Georgia. The case considered herein concerns two grievances filed on behalf of Mr. Crawford by the Atlanta Metro Area Local of the American Postal Workers Union (hereinafter referred to as the "Union"). The first of the two grievances protests the Emergency Placement issued to Mr. Crawford by letter dated February 23, 2001 for testing positive for illegal drugs. The grievance was denied at Step 2 for the following reason:

> Grievant was scheduled for and met with District Medical Review Officer to explain the positive test results. It was determined by the MRO that the explanation given was unacceptable. The positive test results remains in effect. (sic)
> As with all employees that have a positive drug/alcohol test result, they are immediately placed in an emergency off duty status to protect themselves, their fellow employees and the mails.

Subsequently, by Notice of Removal dated April 23, 2001, the Grievant was informed that he was being removed from his employment with the Postal Service effective June 2, 2001 for the following reasons:

> CHARGE 1: YOU ARE CHARGED WITH FAILURE TO MEET THE SAFETY REQUIREMENTS OF YOUR POSITION AS TRACTOR TRAILER OPERATOR, IN THAT YOU TESTED POSTIVE FOR USE OF DRUGS UNDER GUIDELINES SET FORTH BY THE OMNIBUS TRANSPORTATION ACT OF 1991. (sic)
>
> Specifically, as an employee in a safety sensitive position of Motor Vehicle Operator, you were selected for the U.S. Department of Transportation (DOT) random testing for drugs on February 16, 2001. You reported for the testing held at the Atlanta P&DC Health Unit and the random drug screening was administered to you. The specimen that you provided required further testing resulting in a positive screening. On February 23, 2001, the Medical Unit personnel notified Dennis Putt, Supervisor Transportation Operations that the specimen you provided for the random drug screen contained an illegal controlled substance. You were subsequently scheduled to meet with Dr. H. Savery, the Area Medical Review Officer to request a split specimen test, if you desired, to present documentation and/or explain the positive drug test results. You met with Dr. Savery and the information you provided him for the positive drug test result was unacceptable. As a result of your test results you cannot meet the safety requirements of a motor vehicle operator without exposing the Postal Service to unnecessary financial liability. Therefore, you are charged accordingly.

Back to Training Handouts

CHARGE 2: YOU ARE CHARGED WITH IMPROPER CONDUCT.

Specifically, on February 16, 2001, you failed the DOT random drug test. The Employee and Labor Relations Manual, section 661.55 Illegal Drug Use, states "Illegal use of drugs may be grounds for removal". Section 661.53 states in part "No employee will engage in criminal, dishonest, notoriously disgraceful or immoral conduct, or other conduct prejudicial to the Postal Service". Section 666.2 states "requires postal personnel to be honest, reliable, trustworthy, courteous and of good character and reputation. Your behavior violates the trust and confidence placed in you by the Postal Service. In order for your drug test result to be positive, you had to have reported to work with the controlled substance in your system or used the controlled substance while on duty before being tested. This type of behavior on the part of a postal employee cannot and will not be condoned. Therefore, you are charged accordingly.

After review of the information concerning your drug screening, I conducted an Investigative Interview with you on February 23, 2001, during which you stated that you did not know why you tested positive in the screening. Your response was unacceptable.

DUE TO THE SERIOUS NATURE OF THIS INFRACTION, A LESSER PENALTY WOULD NOT BE IN THE BEST INTEREST OF THE POSTAL SERVICE. SUPPORT OF ANY ONE OR MORE OF THESE CHARGES WOULD WARRANT YOUR REMOVAL.

The Union filed a second grievance on Mr. Crawford's behalf to challenge the removal action. The Step 2 Grievance Appeal Form, dated May 11, 2001, states that the action "is punitive and not corrective in nature." As the Corrective Action, the Union requested that "the Notice of Removal be rescinded and removed from all files/records of the Grievant, with no further reference thereto; that the Grievant be made whole for all losses incurred."

The parties met and discussed the grievance at Step 2 and on June 11, 2001, Mr. Dennis Putt, Management Rep, issued the Step 2 Grievance Decision, as follows:

> This is to confirm the disposition of the subject grievance, which was discussed at Step 2 of the grievance procedure. Based on the information presented and contained in the grievance file, the grievance is denied.
> Relevant Facts: In 1994, the Postal Service was mandated by the Department Of Transportation regulations to drug test its safety sensitive commercial drivers. The Postal Service offered last chance agreements to drivers initially testing positive under the new program. Since that time, the Postal Service adopted a "zero tolerance" for illegal substance use/abuse.
> For an employee to have a positive test result, that is an indication that the drugs were used prior to reporting for duty or while on duty. With the zero tolerance policy and the length of time the testing policy has been in

Back to Training Handouts

place, all positive drug test will be dealt with in a "no tolerance" manner with the result being removal from the Postal Service.

Detailed reason for denial:
"Zero Tolerance" is exactly as implied, no tolerance for a positive illegal substance test. Positive results that cannot be substantiated through medical determination will result in removal.

Thereafter, the Union filed the following "Additions/Corrections":

AMAL position is the removal of Mr. Crawford should be dealt with as others were which tested positive for the first time. That is an opportunity to retest (negative), E.A.P. counciling re-employment. These are the conditions that were afforded those employees who tested positive prior to Mr. Crawford. In the case of Mr. Tyrone Crawford, alont the time that he was tested for drugs, Grievant was undergoing treatment for throat cancer. Grievant had been hospitalized for this condition. Grievant was taking a number of medicines at the time. Grievant is sure that nothing he was taking at the time of the drug test was an illegal substance. At the time of the testing Grievant was still going through the mental agony associated with knowing he had cancer. Grievant was not in any condition to clearly dispute the positive finding, not because of illegal drugs, but because of his illness. Since that time, Grievant is convinced that a positive result had to be caused by prescription medication that was being taken for his illness. To this present date, management has not afforded or provided Grievant a copy of the custody control form for the random test. There must be a confirmation test performed on the sample when the screening test shows positive. Management must inform the Grievant of all test results, they have not done so. (sic)

The following correction(s) to Step 2 Decision are entered into the record; The Zero Tolerance for Drugs and Alcohol has never been stringently enforced. Since about 1995, there have been several Postal drivers accused of testing positive for drugs, in each case between 1995 and 2000, the driver was allowed to continue his Postal Carrier under a last straw agreement.

Having been unable to resolve the grievances, the Union appealed the case to arbitration in accordance with the grievance-arbitration procedure contained in the parties' collective bargaining agreement.[1] The undersigned was appointed to hear and decide the issues and a hearing was conducted in Atlanta, Georgia on June 14, 2002 at which time the

[1] Collective Bargaining Agreement Between American Postal Workers Union, AFL-CIO and U.S. Postal Service, November 21, 1998 – November 20, 2000 (hereinafter referred to as the "Agreement").

Back to Training Handouts

parties were afforded full opportunity to present testimony and evidence, to cross-examine the witnesses, all of whom were sworn, and to make arguments in support of their respective positions. At the conclusion of the hearing, the parties chose to submit post-hearing briefs and upon the receipt and exchange of the said briefs on July 19, 2002, the record in this case was closed.

II. SUMMARY OF THE TESTIMONY AND EVIDENCE

Mr. Dennis Putt testified that he has been employed by the Postal Service since 1982 and he currently holds the position of Acting Transportation Manager at the Bulk Mail Center in Atlanta. During the period of time relevant to the grievances he was the Acting Manager of Transportation Operations at the P&DC. He described the duties and responsibilities of his position and explained that the TTO's are required to have a CDL license and a current DOT card as they are in a safety sensitive position. Mr. Putt stated that he was appointed by the District to implement the drug testing program when the Postal Service became required to adhere to the guidelines of the Department of Transportation and he was the person who was notified of the employees who were to be randomly tested.

Mr. Putt made reference to the Management Instruction which sets forth the procedure for complying with the DOT requirements for alcohol and drug testing of employees with a CDL license. He stated that Mr. Crawford was selected to undergo a random drug test on February 16, 2001 and the results of his drug test were positive. Mr. Putt revealed that he has been involved with eight to ten cases where employees tested positive for drugs because he is notified by the Health Unit. He pointed out that the first course of action required by the Management Instruction is to immediately remove the employee from the safety sensitive position by placing him or her in a non-duty status. According to the Transportation Manager, Mr. Crawford had an opportunity to explain why he tested positive for the illegal drug. Mr. Putt pointed out that once an employee is placed in the off-duty status, he or she is then sent to see Dr. Henry Savery at the Health Unit. He added that a split sample allows the employee to have a second test by an independent testing agency. Mr. Putt acknowledged that employees who tested positive for drugs in the past were offered a Last Chance Agreement and he claimed that the employees sought help for alcohol or drug abuse. He stated that the same employees would be removed if they tested positive again. He stated that the Last Chance Agreements were discontinued when the Postal Service started to enforce the Zero Tolerance

Back to Training Handouts

Policy. In this regard, Mr. Putt made reference to a memorandum to all MVS drivers, dated March 26, 2001, which notified the drivers that automatic Last Chance Agreements would no longer be part of the procedure. Mr. Putt stated that it was his decision to issue the Notice of Removal and he had concurrence in the decision. He said he would take the same action today given the same circumstances because the procedures are the same. The Transportation Manager stated that he had no problems or difficulties with Mr. Crawford prior to the drug screening when he tested positive for cocaine.

On cross-examination, Mr. Putt acknowledged that he was not Mr. Crawford's immediate Supervisor when the Emergency Placement was issued. He indicated that the Grievant's immediate Supervisor was present when he signed the Emergency Placement. Mr. Putt revealed that he was also the Step 2 Designee for the Emergency Placement and the Notice of Removal. In explanation as to why there was no reference to a pre-disciplinary interview being held by the Grievant's immediate Supervisor, Mr. Putt stated that he has conducted all interviews with the drivers who test prositive for drugs since the inception of the program when he was appointed as the District Program Director, in order to maintain the integrity of the program. According to Mr. Putt, he conducted an investigative interview with Mr. Crawford and he did not believe there was a difference between an investigative interview and a pre-disciplinary interview. He recalled that Mr. Crawford was on approved leave on February 23, 2001 and he was not given the notification of the Emergency Placement until March 6, 2001. With respect to the memorandum dated March 26, 2001, Mr. Putt pointed out that the Zero Tolerance Policy had been in effect since 1994 and the memo was merely notifying the MVS drivers that there would no longer be an automatic Last Chance Agreement offered to employees who test positive for drugs and/or alcohol. He acknowledged that the Union filed a class action grievance protesting the memo. Mr. Putt maintained that the employees were notified of the Zero Tolerance Drug Policy through a mailing to their home. In addition, he submitted that all of the drivers were aware of the random drug testing policy because the program had been in effect for several years. He acknowledged that prior to 2001 the employees who tested positive for drugs were given a Last Chance Agreement.

Mr. Putt asserted that the Postal Service and the DOT entered into a joint venture to monitor the Postal Service drivers in conjunction with the DOT regulations and at that time the Postal Service Headquarters mandated that there would be no exceptions to the DOT rules and regulations with respect to alcohol and/or drug abuse. In this regard, he maintained that the document entitled "Labor Relations Advisor" dated May 19, 1980 was issued prior to the

Back to Training Handouts

joint venture with DOT and does not take into consideration the guidelines, changes, and policy of the DOT with respect to the random drug test. Mr. Putt revealed that the Postal Service amended the DOT regulations to include removal, if Management so decides, as disciplinary action for the first positive drug test in addition to the DOT guidelines for treatment and a Last Chance Agreement, if Management decides not to remove an employee who tests positive the first time. Mr. Putt went on to point out that when there is no reasonable explanation as to why an employee tested positive for illegal substance it is considered a violation of the Zero Tolerance Policy and the employee is removed. Yet, he acknowledged that Management can offer EAP to the employee. Mr. Putt concluded his testimony by confirming that it was common practice to give a Last Chance Agreement for first time positive drug test results prior to 2001 and the current practice is automatic removal.

Mr. Ralph B. Brown testified that he is currently the President of the Local Union and has been a Postal employee for 33 years. He asserted that he would have been contacted by the Postal Service to discuss any change in a past practice; however, relevant to the instant case, he stated that he never met with Mr. Putt concerning the change in offering a Last Chance Agreement to MVS drivers who test positive for drug use.

Mr. Darryl Gause testified that he is a Tractor Trailer Operator, as well as the Assistant Craft Director for the MVS and Union Steward on Tour 3. In this regard, he stated that there are for more than 50 MVS drivers at the Atlanta P&DC and he filed all the grievances on Tour 3 during the period of time relevant to this case. Mr. Gause acknowledged that the memo dated March 26, 2001 was posted on the bulletin board but stated that he never received a copy of it. Even though the memo is still posted, he commented that employees continue to come to him saying that is the first time they saw it. According to Mr. Gause, every driver who tested positive for drugs prior to Mr. Crawford received a Last Chance Agreement. He noted that Mr. Dobbs who tested positive after Mr. Crawford was also issued a Notice of Removal which has been appealed to arbitration. Mr. Gause made reference to the clock rings reports for Mr. Crawford for pay period 5 - 2001 and pay period 6 -2001. In this regard, he asserted that knew for sure that Mr. Crawford was not at work on February 22 and 23, 2001 because he filed a grievance on behalf of Mr. Crawford since he was charged with Annual Leave on February 22 and 23, 2001 and it should have been sick leave. The Union Steward went on to say that another grievance was filed concerning the Grievant being listed in a non-pay status during pay period 6 - 2001 even though he had not yet come back from vacation. Mr. Gause concluded his testimony by stating that prior to Mr. Crawford, all drivers were given a Last

Back to Training Handouts

Chance Agreement; however, he did not know at what step of the grievance process the Last Chance Agreements were given.

Mr. Bruce Amey testified that he is the Motor Vehicle Craft Director for the Union. In this capacity, he handles the grievances at Step 2 for the Motor Vehicle Craft for three facilities; i.e., North Metro, Crown Road, and the Bulk Mail Center, which, have about 200 drivers, collectively. Mr. Amey made reference to Last Chance Agreements issued to Mr. Roderick Chiles and Wilson Walker, Tractor Trailer Operators (TTO) at the Bulk Mail Center, and he commented that Last Chance Agreements were always given to TTO's who test positive for drugs prior to 2001. He stated that a notice was posted after Mr. Crawford and Mr. Dobbs were not given Last Chance Agreements.

On cross-examination, Mr. Amey acknowledged that there was a different Transportation Manager at the Bulk Mail Center. He also stated that the TTO's at the Bulk Mail Center only transport mail from the BMC to the Annex and do not make any long distance over the highway runs. However, he noted that the DOT guidelines are not based upon the number of miles driven but only on the weight of the vehicle operated.

Mr. Tyrone Crawford testified that he has been employed by the Postal Service since 1994 as a Tractor Trailer Operator. He worked on Tour 3 from 11:30 p.m. to 8:00 a.m. He recalled that when he reported to the Time and Attendance office on March 6, 2001, because he had been out sick, he was taken to Mr. Putt's office where he was given the notice about the positive drug test. He said that after Mr. Putt read him his rights, he signed the document, relinquished his badge and time card, and was escorted to the front door. The Grievant went to see Dr. Savery two days later and he took the bottles of medicine he was taking at the time. Dr. Savery told him that he tested positive for cocaine. Mr. Crawford explained that he had surgery on his throat for cancer on or about September 26. He said that he was prescribed pain medication and a muscle relaxer which he continued to take after he returned to work. According to Mr. Crawford, when he was told that he tested positive for drugs he thought the medications he was taking may have had something to do with it. Mr. Crawford stated that he was at home on February 23, 2001 because he was on sick leave. He did not recall anyone from Management ever calling him to say they wanted to have a pre-disciplinary interview. The Grievant asserted that he never used cocaine and he did not use any illegal drugs on February 16, 2001, the date of the drug test.

On cross-examination, Mr. Crawford acknowledged that employees in safety sensitive positions are prohibited from taking drugs. He indicated the random drug test on February 16,

Back to Training Handouts

2001 was the first time he had a drug test. The Grievant revealed that Mr. Putt informed him that he was contemplating disciplinary action for the positive drug test. He did not remember telling Dr. Savery that he had surgery in December, but he told the doctor that he did not take illegal drugs. Mr. Crawford stated that he did not ask for assistance from the EAP.

Henry W. Savery, M.D., testified that he holds the position of Associate Area Medical Director for the Southeast Area, having been employed by the Postal Service for seven years. Dr. Savery revealed that he had a confidential conference with Mr. Crawford on March 8, 2001. He revealed that the Grievant gave him a list of the medications he was taking at the time, which included a muscle relaxer, an analgesic, and Tylenol. Dr. Savery asserted that none of the prescribed medications would have caused the positive test result for cocaine. According to Dr. Savery's recollection, Mr. Crawford informed him that he underwent throat surgery in December 2000. Dr. Savery stated that the Grievant requested a split specimen test and the second test confirmed the positive result for cocaine.

III. RELEVANT PROVISIONS OF THE AGREEMENT

ARTICLE 16
DISCIPLINE PROCEDURE

Section 1. Principles
In the administration of this Article, a basic principle shall be that discipline should be corrective in nature, rather than punitive. No employee may be disciplined or discharged except for just cause such as, but not limited to, insubordination, pilferage, intoxication (drugs or alcohol), incompetence, failure to perform work as requested, violation of the terms of this Agreement, or failure to observe safety rules and regulations. Any such discipline or discharge shall be subject to the grievance-arbitration procedure provided for in this Agreement, which could result in reinstatement and restitution, including back pay.

Section 7. Emergency Procedure
An employee may be immediately placed on an off-duty status (without pay) by the Employer, but remain on the rolls where the allegation involves intoxication (use of drugs or alcohol), pilferage, or failure to observe safety rules and regulations, or in cases where retaining the employee on duty may result in damage to U.S. Postal Service property, loss of mail or funds, or where the employee may be injurious to self or others. The employee shall remain on the rolls (non-pay status) until disposition of the case has been had. If it is proposed to suspend such an employee for more than thirty (30) days or discharge the employee, the emergency action taken under this Section may be made the subject of a separate grievance.

Back to Training Handouts

IV. CONTENTIONS OF THE PARTIES

A. Postal Service

The Postal Service contends that there was just cause to place Mr. Tyrone Crawford in an off duty status when he tested positive for drugs. The Postal Service points out that the Tractor Trailer Operator, an employee working in a safety sensitive position,failed to adhere to the safety rules and regulations, even though he was aware of the Postal policy regarding drug and/or alcohol. He tested positive for cocaine while on duty on February 16, 2001. According to the Postal Service, all of the factors for determining just cause are present in this case. The employee had knowledge of the possible consequences of his actions as the use of alcohol and illegal drugs is prohibited conduct, violates safety rules, and justifies disciplinary action, including removal. The Postal rules set forth in the Code of Conduct contained in the ELM apply to all Postal employees and the DOT regulations apply to workers in safety sensitive positions throughout the Nation. Supervisor Dennis Putt, was notified of the positive drug test results and obtained additional information from the Medical Review Officer which supported the findings. The positive drug test was supported by the second test run on the split specimen sample and there was no testimony or evidence to rebut the positive test result. In this regard, the Postal Service maintains that the Grievant had to have reported to work with the controlled substance in his system or used the controlled substance while on duty before being tested. It submits that this type of conduct cannot be condoned in the work place and the Agreement clearly states that an employee may be removed from employment where there is evidence of testing positive for alcohol or drugs and violation of safety rules and regulations.

Although the Postal Service recognizes that employees who tested positive for drugs were offered Last Chance Agreements prior to March 2001, it submits that this was not a successful practice. A memorandum was posted on the bulletin board to notify the MVS drivers that Last Chance Agreements would no longer be automatic. In addition, the Postal Service emphasizes that some offenses are so grave that severe discipline or removal is the only reasonable penalty to be imposed, even on the first occurrence.

The Postal Service questions the credibility of the Grievant who testified that he did not use illegal drugs despite the positive drug results from both the initial test and the "B" specimen test from another lab. Furthermore, he told Dr. Savery that he had surgery in December 2000 when the evidence clearly show that his surgery was in September 2000. Dr. Savery emphasized that the prescription medications Mr. Crawford was taking at the time could not

Back to Training Handouts

cause a positive test result for cocaine. In support of its arguments, the Postal Service calls attention to several prior Arbitration Awards in which the removals for testing positive for drugs have been upheld.

In view of all the above, the Postal Service requests that the grievance be denied.

B. Union

The Union challenges the Emergency Placement and subsequent Notice of Removal issued to Mr. Tyrone Crawford. According to the Union, even if the Grievant knowingly engaged in the use of illicit drugs, then based upon the past practice at the Atlanta P&DC, at a minimum, he should have been offered a Last Chance Agreement. The Union maintains that all similarly situated employees who tested positive for drugs for the first time were given Last Chance Agreements prior to March 2001.

According to the undisputed testimony of Union Steward, Darryl Gause, every driver who tested positive for drugs for the first time had been allowed to enter into a Last Chance Agreement with the exception of Mr. Crawford and Mr. Marlon Dobbs. In this regard, the Union calls attention to the recent Award rendered in Mr. Dobbs' arbitration, in which Arbitrator Irving N. Tranen[2] found that the Notice of Removal was faulty because Mr. Dobbs was not granted a Last Chance Agreement as had been the custom and practice at the Atlanta MVS. Mr. Dobbs was reinstated to his position and given a Last Chance Agreement. The Arbitrator noted that the memorandum informing employees that a Last Chance Agreement would no longer be automatic for drivers who test positive for drugs was posted on the bulletin board on March 26, 2001; however, Mr. Dobbs tested positive for drugs on March 2, 2001. It was pointed out that "the grievant cannot be terminated as a result of a policy change that had not been made known to him." The Union argues that the same reasoning applies to Mr. Crawford who was issued an Emergency Placement due to testing positive for drugs more than a month prior to the policy change.

In addition, the Union questions the credibility of Acting Manager Dennis Putt who testified that he conducted an Investigative Interview with Mr. Crawford on February 23, 2001, in view of the clock rings which clearly show that the Grievant was in leave status on that date. Also, the Union submits that the Postal Service failed to follow the required procedure relative

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[2] USPS and APWU, Case Nos. H98V-4H-D 01136778 and 01164225, June 21, 2002.

Back to Training Handouts

to changing the policy of giving Last Chance Agreements when it ended the past practice without notifying the Union and discussing the change. With respect to the unilateral elimination of Last Chance Agreements, the Union asserts that the notice posted on the bulletin board still leaves the possibility for negotiations because it merely says that Last Chance Agreements will not be automatic.

The Union claims that the Postal Service ignored Federal Law by not providing Mr. Crawford with work in an area that was not a safety sensitive position and not referring him to EAP for treatment as required by the DOT Federal Highway Administration policy. It further argues that the removal was harsh and punitive in violation of the provisions of Article 16, Section 1 of the Agreement which state that discipline should be corrective in nature.

For all the above reasons, the Union requests that the grievance be sustained and that Mr. Crawford be reinstated to his position of Tractor Trailer Operator and made whole for all losses.

V. DISCUSSION AND FINDINGS

The Grievant in this case, Mr. Tyrone Crawford, a Tractor Trailer Operator, is required to carry a Commercial Driver's License (CDL) and he is thereby subject to the Federal regulations of the Department of Transportation which require random drug testing. Mr. Crawford was randomly selected by an independent selection group to be tested on February 16, 2001 and the result of his drug test was positive for cocaine. He was removed from duty pursuant to Article 16, Section 7 of the Agreement and the requirements of the DOT regulations. Thereafter, Mr. Crawford was issued a Notice of Removal which charged him with "Failure to meet the Safety Requirements of Your Position as Tractor Trailer Operator" and "Improper Conduct." The issue to be resolved herein is whether the Postal Service had just cause to place the Grievant in an emergency off duty status and subsequently issue the Notice of Removal on April 23, 2001.

The Postal Service argues that under the provisions of Article 16, Section 7, "an employee may be immediately placed on an off-duty status (without pay) by the Employer ... where the allegation involves intoxication (use of drugs or alcohol)" The Postal Service submits that an Emergency Placement was appropriate since the Grievant tested positive for illegal drug use. The allegation of drug use satisfied one of the conditions for Emergency Placement. In addition, an allegation was made that retaining Mr. Crawford on duty "may

Back to Training Handouts

result in damage to U.S. Postal Service property" and "may be injurious to self or others." This is especially true when the employee is responsible for operating a motor vehicle in excess of 26,000 pounds on public highways, which accounts for the requirement of the DOT regulations that "a covered employee must be removed from safety-sensitive duty if he or she has a positive drug test result." Clearly, the Postal Service cannot jeopardize the safety of its employees and others by allowing employees who test positive for illegal drugs to operate vehicles weighing in excess of 26, 000 pounds on the public highways. Therefore, it is found that the Emergency Placement in off-duty status pending further investigation was warranted. The grievance challenging the Emergency Placement is denied.

The record developed in this case supports the charges set forth in the Notice of Removal; i.e., the Grievant tested positive for cocaine as the result of a random drug test on February 16, 2001, despite the Grievant's claim that he did not take illegal drugs. Although removal is a severe discipline, the undersigned and numerous other Arbitrators have upheld removals of MVS drivers issued on the basis of a first time positive drug test because of the great risk to the Postal Service and the public. Nevertheless, the Agreement requires just cause for discipline and in this respect, mitigating circumstances may be taken into consideration. In this particular situation, there is no dispute that all drivers at the Atlanta installation who tested positive for illegal drugs were given Last Chance Agreements prior to March 2001. At that time, the Postal Service made the decision to eliminate the custom and practice of automatically giving Last Chance Agreements and a memorandum informing the MVS drivers of the change in policy was issued on March 26, 2001 and placed on the bulletin boards. Mr. Crawford was tested and placed on Emergency Suspension prior thereto.

Mr. Crawford and shortly thereafter, Mr. Dobbs, were issued a Notice of Removal rather than being offered a Last Chance Agreement, when they tested positive on a random drug test. The Union appealed Mr Dobbs' case to arbitration and the parties were awaiting a decision at the time of the hearing in the instant case. On June 21, 2002, Arbitrator Tranen sustained the grievance, gave Mr. Dobbs a Last Chance Agreement, and reinstated him to his position as TTO. As recognized by Arbitrator Tranen, there was a custom and practice at the Atlanta MVS of giving an employee a Last Chance Agreement after failing a drug test on the first time and the change in policy was dated "some 17 days after the grievant received his Notice of Emergency Placement." He went on to emphasize that Mr. Dobbs "cannot be terminated as a result of a policy change that had not been made known to him." He asserted that "there has to be a consistency in application of discipline." Likewise, in the case at hand,

Back to Training Handouts

the notification of the policy change was issued after Mr. Crawford received his notice of Emergency Placement, more than a month later. For this reason, the grievance filed on behalf of Mr. Crawford in protest of the Notice of Removal dated April 23, 2002 is sustained. In addition, with more than six years of service, Mr. Crawford, described by Mr. Putt as a good employee causing no problems, may be a candidate for rehabilitation.

Based upon the particular circumstances presented in this case, it is found that the Postal Service did not have just cause to issue the Notice of Removal to Mr. Crawford. Discipline must be consistent and applied in accordance with the provisions of Article 16, Section 1, of the Agreement. In this instance, the Postal Service did not follow the past practice of offering a Last Chance Agreement to Mr. Crawford for testing positive on a random drug test. Albeit the Union is now on notice that a Last Chance Agreement for positive drug tests will not be automatic. The application of a Zero Tolerance policy fails to take into consideration the basic concepts of just cause as provided for in the parties' collective bargaining agreement. The DOT regulations do not require the Postal Service to remove an employee for positive result. It does state, however, that the Employer may decide to remove the employee. Such action would presumably be taken after considering the just cause provision and any mitigating circumstances.

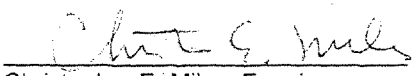
AWARD

The grievance challenging the Emergency Placement issued to Mr. Tyrone Crawford on February 23, 2001 is denied. Mr. Crawford was randomly tested for drugs pursuant to the DOT requirements and the result was positive for cocaine. Thus, it is found that the Grievant was appropriately placed in an off-duty status in accordance with Article 16, Section 7 of the Agreement, which authorizes the immediate placement in an off-duty status where the allegation involves use of drugs.

However, based upon the past practice at the Atlanta facility of offering a Last Chance Agreement to MVS drivers who test positive for drugs for the first time, it is found that the Postal Service did not have just cause to issue the subsequent Notice of Removal to Mr. Crawford without offering him a Last Chance Agreement. Consequently, the grievance protesting the removal action is sustained, in part. The removal is reduced to a thirty (30) day suspension beginning on June 2, 2001. The Grievant shall be returned to his employment with the Postal Service and made whole for any loss of earnings after the thirty (30) day

Back to Training Handouts

suspension period. He shall be required to enter into a Last Chance Agreement which will permit the Postal Service to conduct unannounced drug tests. In addition, the Last Chance Agreement should provide that if the Grievant tests positive again, he shall be removed from his employment by the Postal Service.



Christopher E. Miles, Esquire
Labor Arbitrator

September 11, 2002

Back to Training Handouts

18. Regional Arbitration Award on Positive Drug Test: H98V-1H-D 01090476 - M. K. Durham, J. D.

Back to Trainin

Regular Arbitration Panel

In the Matter at Arbitration Between the United States Postal Service And the American Postal Workers Union	Grievant: Robert Taylor Office: Atlanta P&DC Case: H98V-1H-D 01090476 2001-0259

Before: M. K. Durham, J.D.

Appearances:

For the Postal Service: Cynthia Johnson
For the Union: Ulysses Coneway

Place of Hearing: Atlanta, GA
Date of Hearing: August 29, 2001
Date of Award: September 29, 2001

Relevant Contract Provisions: Article 16.7

Contract Year: 1998-2000
Type of Grievance: Discipline (Emergency Placement)

Award Summary

Grievant has been in non-work, non-pay status for at least seven months based solely on an emergency suspension under Article 16.7. The length of time under these circumstances is patently unfair. This "emergency placement" amounts to either a constructive suspension or constructive discharge governed by other sections of Article 16. There was no review and concurrence of the action. The issuing supervisor did not conduct an independent investigation. Management has no explanation for the length of the alleged emergency suspension or for its failure to propose removal or return the Grievant to duty. The original rationale for the 16.7 action was based on faulty information. The 16.7 action is overturned. Grievant shall be made whole.

MK Durham

M.K. Durham, J.D.
Arbitrator

Back to Training Handouts

I. ISSUE

Is the emergency placement of Grievant in non-pay, non-work status beginning January 21, 2001 and continuing through this arbitration hearing based on just cause? If not, what shall be the remedy?

II. OPINION

Grievant, a Tractor Trailer Operator employed by the Postal Service for six years, was scheduled for a random drug screen on January 10, 2001. The laboratory determined that the sample he provided was not consistent with human urine. The issuing supervisor, acting manager Dennis Putt, testified that the medical unit informed him on or before January 18 that Grievant had a positive drug test.

Manager Putt drafted a notice of emergency placement under Article 16.7 on January 18 and had it delivered to the Grievant on January 21, 2001. The notice stated:

> Upon the laboratory analyzing your provided sample, it was determined the sample you provided was not consistent with human urine. As a result, the test procedure has been determined by the Medical Officer as being a positive drug test. (failure to provide a human urine specimen)
>
> An employee may be immediately placed in an off-duty status (without pay) by the employer but remain on the rolls where there is an allegation involving intoxication or the use of drugs... or where the employee may be injurious to self or others.

The parties stipulated that Grievant has not been issued a notice of Removal (Union 1) and has remained in the off-duty placement without pay as of this hearing, for more than 7 months, with no contact from management as to his status. Management had no explanation for the length of the "emergency suspension."

The parties stipulated that no pre-disciplinary interview nor concurrence by higher level official occurred. Management argued that none was necessary because this was an emergency placement. The Union argues that the action amounts to a constructive suspension, and as such commands that an investigation, a pre-disciplinary interview and concurrence with the discipline take place.

Back to Training Handouts

Acting Manager Putt testified that he placed Grievant on the emergency suspension because he was told by the Medical Unit over the phone that Grievant tested positive for drugs. He relied on Postal policy that employees who test positive for drugs are placed immediately on "emergency, off-duty status, without pay."

Yet, Medical Review Officer Dr. Henry Savery testified that the lab report did not convey a positive testing for drugs. He noted that Jt-4, the American Medical Laboratories Medicolegal Chain of Custody Report, conveyed a "Test Order Canceled" final report. He testified that it is incorrect to call such a positive drug test.

This Arbitrator is appalled at the action and inaction that have left this employee in apparent "indefinite" non-work, non-pay status without regard to basic due process considerations.

III. AWARD

Grievance sustained. Grievant shall be made whole for all wages and benefits to which he is entitled under the National Agreement for the time he was in Section 7. Emergency Procedure status.

M.K. Durham

M.K. Durham, J.D.
Arbitrator

Back to Training Handouts